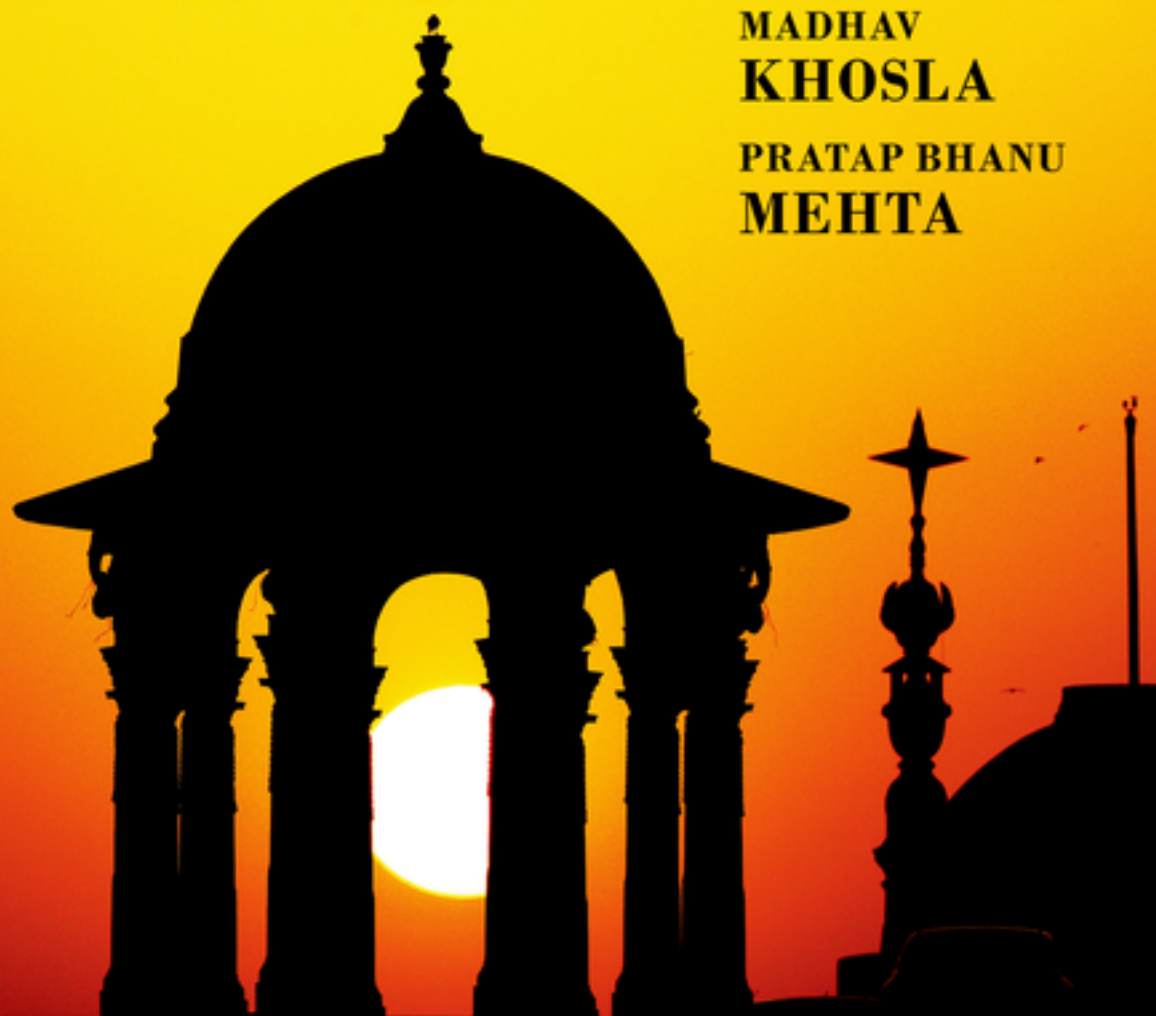


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SUJIT
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PRATAP BHANU
MEHTA



≡ The Oxford Handbook of
**THE INDIAN
CONSTITUTION**

THE OXFORD HANDBOOK OF

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Edited by
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and
PRATAP BHANU MEHTA

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LIST OF ABBREVIATIONS

ADC	Autonomous District Council
AFSPA	Armed Forces Special Powers Act 1958
AGP	Asom Gana Parishad
AIFR	Appellate Authority for Industrial and Financial Reconstruction
AWAG	Ahmedabad Women's Action Group
BCCI	Board of Control for Cricket in India
BIFR	Board for Industrial and Financial Reconstruction
BJP	Bharatiya Janata Party
CAG	Comptroller and Auditor-General
CEC	Central Empowered Committee
CEGAT	Customs, Excise, and Gold (Control) Appellate Tribunal
CBFC	Central Board of Film Certification
CBI	Central Bureau of Investigation
CEC	Chief Election Commissioner
CJI	Chief Justice of India
CPR	Centre for Policy Research
CISR	Council of Scientific and Industrial Research
DPSPs	Directive Principles of State Policy
DRT	Debt Recovery Tribunal
EC	Election Commission
FC	Finance Commission
FEMA	Foreign Exchange Management Act
FRs	Fundamental rights
GST	Goods and Services Tax
HPC	High-Powered Committee
HRCE	Hindu Religious and Charitable Endowments Act
HUF	Hindu undivided family
IAS	Indian Administrative Service
ICAR	Indian Council of Agricultural Research
ICS	Indian Civil Service
IDRC	International Development Research Centre
IMDT	Act Illegal Migrants (Determination by Tribunals) Act
INC	Indian National Congress
IRIS	Institutional Reform and Informal Sector
IRWDA	Inter-State River Water Disputes Act 1956
ISC	Inter-State Council
JDAS	Janata Dal Ajit Singh Group
JMM	Jharkhand Mukti Morcha

JPC	Joint Parliament Committee
LARR	Land Acquisition, Rehabilitation, and Resettlement Act 2013
LIC	Life Insurance Corporation of India
MNF	Mizo National Front
MPLADS	Member of Parliament Local Area Development Scheme
NCBC	National Commission for Backward Classes
NCERT	National Council of Educational Research and Training
NCFSE	National Curriculum Framework for School Education
NCLAT	National Company Law Appellate Tribunal
NCLT	National Company Law Tribunal
NCRWC	National Commission to Review the Working of the Constitution
NCT	National Capital Territory
NDA	National Democratic Alliance
NDC	National Development Council
NEERI	National Environmental Engineering Research Institute
NITI	National Institution for Transforming India
NJAC	National Judicial Appointments Commission
NRI	Non-Resident Indian
NTT	National Tax Tribunal
OBCs	Other Backward Classes
OCI	Overseas Citizen of India
ONGC	Oil and Natural Gas Corporation Limited
PC	Planning Commission
PIL	Public Interest Litigation
PIO	Person of Indian Origin
PMO	Prime Minister's Office
POTA	Prevention of Terrorism Act 2002
POTB	profession, occupation, trade, or business
PSC	Public Service Commission
PWDVA	The Protection of Women from Domestic Violence Act 2005
RBI	Reserve Bank of India
RP	Representation of the People Act
SAD	Shiromani Akali Dal
SC	Scheduled Caste/Supreme Court
SIA	Social Impact Assessment
ST	Scheduled Tribe
SEZ	special economic zone
SLP	Special Leave Petition
TADA	Terrorist and Disruptive Activities (Prevention) Act 1987
TFD	traditional forest dweller
UAS	Unified Service Access License
ULFA	United Liberation Front of Assam
UT	Union Territory

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CHAPTER 1

LOCATING INDIAN CONSTITUTIONALISM

SUJIT CHOUDHRY, MADHAV KHOSLA,
AND PRATAP BHANU MEHTA

I. INTRODUCTION

INDIAN constitutional law is of immense historical, practical, and theoretical significance. Almost all the issues that arise in the course of thinking about law in modern constitutional democracies find their most intense expression in the evolution of Indian constitutional law. India's Constitution was the framework through which the world's largest and one of its most contentious democracies was brought into being. It was the charter through which an ancient civilisation was set on the road to modernity and radical social reform. It is the framework that provides for the management and accommodation of the most complex ethnic, religious, and linguistic diversity of any modern nation-State. It has been the site where different ideas of development have been contested and reimagined. It has been the normative and legal framework through which the world's largest democracy contests its own future. The future of constitutionalism in the world depends a good deal on the future of the Indian experiment.

This Handbook provides a *tour d' horizon* of Indian constitutional law. This is very much a book for scholars and lawyers, in that the focus is on the ideas, doctrines, arguments, and controversies that constitute the terrain of constitutional law in India. But behind these legal arguments are intense political struggles, social stakes, and economic aspirations. Indeed, one of the things we hope will become clear is that a living constitution like India's has the extraordinary capacity to rearticulate—some would say domesticate—social struggles in the language of constitutionalism. This gives Indian constitutional law a variety, a thickness of doctrine and incentives to conceptually innovate in ways that are unprecedented. We hope this Handbook will prove to be an accessible but rigorous guide to the sheer fecundity of Indian constitutional law.

In this chapter, we seek to achieve three outcomes. The first is to explicate the historical commitment to the idea of constitutionalism. What kind of commitment was the commitment to constitutionalism? How did the framers understand the constitutional project? We

suggest that more than the content of its substantive provisions, the Constitution was seen as inaugurating a new kind of morality. Further, what made Indian constitutionalism distinctive was its self-consciously cosmopolitan character. Secondly, we turn to some of the major substantive tensions that have defined the contours of constitutionalism in India, and give a brief account of the major axes around which the normative and institutional imagination of the Constitution is articulated. Finally, we consider the character of constitutional development in India, in particular the forces that have shaped its evolution.

II. THE HISTORICAL IMAGINATION

The Indian constitutional project can be described in many ways. For its most prominent historian, the project was about ‘social revolution.’¹ For others, it was a political project, an expression of the fact that the Indian people were finally sovereign and dedicating themselves to the universal values of liberty, equality, and fraternity. The project does, in some ways, further all these goals. But the backdrop of those substantive aims contains two meta-aims of the Constitution, as it were, that often go unremarked. When the Constitution was enacted there was a self-conscious sense that in writing a text, India was finding a way to resolve major substantive debates and disputes over norms and values. The task of constitutionalism was a morality that transcended positions and disagreements on particular issues; indeed, its strength was that it gave a framework for having a common institutional life despite disagreements. The second aspect of constitutionalism was the ambition that while the Constitution would serve Indian needs, it would not be bound by any particular tradition. It would, rather, reflect and be in the service of a global conversation on law and values. In the debates over particular doctrines, it is easy to miss the distinctiveness of these two ambitions, and the way in which they have informed the practice of constitutionalism in India. In some ways, more than particular achievements, it is the institutionalisation of these practices, against the odds, that constitutes the greatest achievement and challenge of Indian constitutionalism.

1. Constitutional Morality

Constitutions endure for a variety of reasons.² Some endure because of a deep political consensus. In some societies the sheer balance of power amongst different political groups makes it difficult for any group to overthrow a constitutional settlement. In some cases constitutions provide an artful settlement that does not deeply threaten the power of existing elites, but nevertheless provides a mode of incorporating the aspirations of previously excluded groups. While it is hard, not simply for methodological reasons, to determine what has enabled the endurance of India’s Constitution, it is worth reflecting on how the project of constitutionalism was historically understood.

¹ See Granville Austin, *The Indian Constitution: Cornerstone of a Nation* (Oxford University Press 1966) xxi.

² The section draws extensively on Pratap Bhanu Mehta, ‘What is Constitutional Morality?’ (2010) 615 Seminar 17.

What does it mean for a society to give allegiance to a constitution? India's Constitution bore the imprint of a long nationalist movement that made choices that have shaped its trajectory. The first and most significant choice was the idea of constitutionalism itself. The Indian nationalist movement, while radical in its normative hopes, was self-consciously a constitutional movement. In its early phases, it spoke the language of English law. Even when it acquired, under Gandhi, the character of a mass movement, it was anti-revolutionary. It placed a premium on eschewing violence as a means of overturning social order or advancing political goals. India has been subject to occasional violent political movements, from various secessionist movements to Maoism. But violent revolutionary movements have found it difficult to gain mainstream legitimacy. In that sense, even if not expressed in the formal language of law, a grammar of constitutionalism has marked India's mainstream political choices. Although the idea of non-violence has been associated with Gandhi's legacy, its greatest political practitioners have been India's most marginalised groups. Dalits, who were India's most unimaginably oppressed social groups, with most reason to resent the structural violence of India's inherited social and political order, have in a sense been at the forefront of owning a constitutional culture. This is in part due to the fact that BR Ambedkar, now iconised as one of the architects of the Indian Constitution, was Dalit; this is partly due to the fact that the Constitution gave political representation and representation in public jobs to Dalits, and partly due to the fact that the Constitution saw itself as a charter of social reform. But given the scale of social violence that Dalits suffered, the degree to which they see the Constitution as their own is remarkable. Constitutionalism at its core signifies a politics of restraint.

This idea was at the heart of one of the clearest expositions of the constitutional project given by Ambedkar. To understand the nature of the commitment to constitutionalism, one might turn to Ambedkar's discussion of the idea of 'constitutional morality', a set of adverbial conditions to which agents in a constitutional setting must subscribe. Ambedkar invoked the phrase 'constitutional morality' in a famous speech delivered on 4 November 1948. In the context of defending the decision to include the structure of the administration in the Constitution, he quoted at great length the classicist, George Grote. For Grote, the prevalence of constitutional morality was 'the indispensable condition of a government at once free and peaceable'.³ Constitutional morality meant, Grote suggested,

a paramount reverence for the forms of the constitution, enforcing obedience to authority and acting under and within these forms, yet combined with the habit of open speech, of action subject only to definite legal control, and unrestrained censure of those very authorities as to all their public acts combined, too, with a perfect confidence in the bosom of every citizen amidst the bitterness of party contest that the forms of the constitution will not be less sacred in the eyes of his opponents than his own.⁴

For Grote, 'constitutional morality' was not simply the substantive morality of a constitution, a meaning that is often attributed to the phrase today. It also did not imply the familiar nineteenth-century usage, where constitutional morality refers to the conventions and protocols that govern decision making where the constitution vests discretionary power or is silent. Rather, Grote's use of the term, and Ambedkar's reliance upon it, focused on a set

³ Cited from *Constituent Assembly Debates*, vol 7 (Lok Sabha Secretariat 1986) 38, 4 November 1948.

⁴ Cited from *Constituent Assembly Debates*, vol 7 (Lok Sabha Secretariat 1986) 38, 4 November 1948.

of historical observations about constitutionalism. Both Grote and Ambedkar accepted the rarity of constitutional morality. Grote's *History of Greece* had been motivated, in part, by a desire to rescue Athenian democracy from the condescension of its elitist critics such as Plato and Thucydides, and argued that Athenian democracy had, even if briefly, achieved elements of a genuine constitutional morality. For Grote, there were only two other plausible instances in which constitutional morality had surfaced. The first was the aristocratic combination of liberty and self-restraint experienced in 1688 in England; the second was American constitutionalism. All other attempts had failed. For Ambedkar, this lesson was an important one, adding to the worry of creating democracy in a country like India, whose society was entirely lacking in democratic spirit and experience.

Ambedkar's turn to Grote served to emphasise constitutionalism as a set of practices. At the heart of this set was the idea of self-restraint. The starkest expression of an absence of self-restraint was revolution. The most important goal of constitutional morality was to avoid revolution, to turn to *constitutional methods* for the resolution of claims. The forms of political action that had become so famous during the nationalist movement—satyagraha, non-cooperation, civil disobedience—were all at odds with the idea of constitutional morality. The turn to process meant that constitutional morality recognised pluralism in the deepest possible way. Remarkably, Ambedkar emerges as equally, if not more, committed to a form of non-violence as Gandhi. The respect towards constitutional forms is the singular means through which a non-violent mode of political action can come into being. The key challenge in any political society is, after all, the arbitration of difference, although Ambedkar had in mind differences of opinion rather than identity. It was the unanimity of constitutional process that respected the plurality of agents. This is how, for instance, Ambedkar defends the exclusion of socialism from the Constitution.⁵

A related element of constitutional morality is the suspicion of dispositive singular claims to represent the will of the people. In part, what troubled Ambedkar about satyagraha was this very fact—its agents saw themselves as personifying the good of the whole. Any claim to hero worship or personification was a claim to embody popular sovereignty; it was to reject the argumentative sensibility that constitutional morality demanded. For the Constituent Assembly, any claim to speak on behalf of popular sovereignty—to represent sovereignty—was a claim to usurp it. No such claim could be permissible, for the chief aim of constitutional morality was to prevent any branch of government from declaring that it could uniquely represent the people.

2. The Cosmopolitan Constitution

The Indian Constitution is, in a significant sense, a cosmopolitan constitution.⁶ It was a cosmopolitan constitution in its fidelity to the universal principles of liberty, equality, and fraternity. But it is also a cosmopolitan constitution in a second sense. Its text and principles, its values and its jurisprudence, have been situated at the major cross-currents of global

⁵ See *Constituent Assembly Debates*, vol 11 (Lok Sabha Secretariat 1986) 975–76, 25 November 1949.

⁶ This conception of cosmopolitanism overlaps with Somek's, though Somek is less concerned with the diverse sources and authority of law, which is a second sense of cosmopolitanism that we focus on. See Alexander Somek, *The Cosmopolitan Constitution* (Oxford University Press 2014).

constitutional law. The Indian Constitution, when it was promulgated, laboured under the charge of being un-Indian. In the closing debates of the Constituent Assembly, we notice the criticism that the Constitution bore little resemblance to Indian ways of thinking about the law. It jettisoned even the political theory of the man from whom so much of the nationalist movement drew its authority: Gandhi. Instead, it represented an amalgam of many sources and traditions. For instance, it was profoundly shaped by the system of English Common Law that had effectively been institutionalised in India. It bore a deep imprint of the Government of India Act 1935. It borrowed Directive Principles of State Policy from the Irish Constitution, and was influenced by the American debates over due process—all made to serve distinctly Indian political challenges. Even though the Constitution had the political authority of the nationalist movement behind it, it ran the risk of being vulnerable to two charges. The practical accusation was that it was not a constitution suited to India's needs. The theoretical charge was that the Constitution represented a kind of derivative eclecticism.

This is also a charge often made against the subsequent development of Indian constitutional law. The practical accusation against the Constitution can only be answered historically. At this juncture it is sufficient to say that the Indian Constitution has not just endured and consolidated; it has become as much a part of India's national identity as any other institution. It has provided a framework for adjudicating deep political disputes. It is a touchstone frequently invoked to make normative claims. But the charge of derivative eclecticism occludes what is interesting about Indian constitutional law. From its very promulgation, the Indian Constitution situated itself at the forefront of universalism. The Indian nationalist movement was self-conscious about the need to transcend nationalism; Indian Independence was instrumental in realising the unity of mankind. For such a project, it did not make sense to limit the possible sources of normative or legal authority. To be free was not to be bound by a particular tradition, or just a particular political contract. It was to be free to take any tradition and history and make it one's own.⁷

It is for this reason that Indian constitutional law and Indian courts are at the cross-currents of almost all major legal debates. They are not constrained by the sources they cite: they can roam freely over American, English, South African, Israeli, or even Pakistani jurisprudence. They can freely read international law principles into the Constitution. They can read the American First Amendment into the Indian Constitution. While the quality of the reasoning can be disputed in individual cases, there is no question that to enter the world of Indian constitutional law is not to enter into a world of parochial concerns, derived from the peculiarities of a political tradition; it is to enter a global conversation on law, norms, values, and institutional choices.

This conversation bears the imprint of almost all layers of constitutional transformation. Like many constitutions it concerns itself with the limits and constraints on public power, the ways in which the sovereignty of the people can be preserved against various usurpations. It concerns itself with the recognition and protection of human rights. Indian constitutional law innovated in the expansion of these rights, to make social and economic rights

⁷ Two initial and path-breaking efforts at understanding the sources of Indian law are Rajeev Dhavan, *The Supreme Court of India: A Socio-Legal Critique of its Juristic Techniques* (NM Tripathi 1977) and Marc Galanter, *Law and Society in Modern India* (Oxford University Press 1989).

justiciable. But it also bears the imprint of complex debates over development and the place of property rights in that process. This is a body of constitutional law that has also allowed for a transition from a State-led, redistributive model of economic development to a more liberalised and globalised economy. It has dealt with the exigencies of a complex regulatory State and the tensions between legislative authority and delegation that a modern administrative State imposes upon politics.

In any constitutional tradition there is a tension between the backward- and forward-looking aspects of constitutional law.⁸ The backward-looking aspects refer to constitutional texts, founders, and intentions. The forward-looking aspects refer to an ongoing conversation on the nature of social contract and the nature of social justice. Even the most entrenched constitution requires relegitimation in the light of changing circumstances, new challenges, and changing social values. In any constitutional tradition, there is a tension in how law positions itself between its authority derived from the past and its utility for the future. Indian constitutional law is fascinating for the way in which the backward-looking aspects of the law—fidelity to a text, the citation of precedent, and the invocation of the spirit of the founders—are invoked in creative reinterpretations of the constitution to make it serve changing needs. The manner in which this tension is negotiated provides an instructive case study of the relationship between constitutional law and political legitimation. It will hopefully invite scholars to consider how constitutional law needs a theory of legitimation that does not reduce it to fidelity to a text or inherited authority on the one hand, or an exogenously given moral and political theory on the other. It will demonstrate how constitutional law *operates* as a point where the authority of the past and the challenges of the future meet, in the context of an ongoing democratic conversation. In this sense, constitutional law is not just a doctrine; it is a site for the mediation of different tensions and conflict.

When India's Constitution was promulgated, it was often criticised for its distance from Indian society. Even as recently as the fiftieth anniversary of the Constitution, political scientists were arguing that the Indian Constitution was not a reference point for Indian political culture.⁹ But the chapters in this Handbook convey the opposite impression. The greatest success of constitutionalism in India is now the promiscuity of the language of constitutionalism. Tocqueville had suggested that in the United States political questions were often apt to become judicial questions. In India, by extension, a vast range of political, administrative, and judicial matters have become constitutional questions that are routinely brought to the courts. Both citizens and judges invoke constitutional values and doctrine not just when claiming rights, determining jurisdiction, or limiting governmental power. They invoke constitutional values in a variety of claims: from protecting ecology to allocating natural resources, redressing grievances against governments, and bringing ordinary tort claims. Indian constitutional law is interesting precisely because it has constitutionalised so much of Indian life. Indeed, one of the major contributions of this Handbook, through its treatment of most areas of Indian constitutional law, is to document the staggering breadth and depth of Indian constitutional jurisprudence. Moreover, although the

⁸ See Lawrence Sager, 'The Domain of Constitutional Justice' in Larry Alexander (ed) *Constitutionalism: Philosophical Foundations* (Cambridge University Press 1998) 235.

⁹ See Sunil Khilnani, 'The Indian Constitution and Democracy' in Zoya Hasan, E Sridharan, and R Sudarshan (eds) *India's Living Constitution: Ideas, Practices, Controversies* (Permanent Black 2002) 64.

Supreme Court features centrally, there is a vast High Court jurisprudence as well. Future accounts of the reasons for India's surprising success as a consolidated democracy that surmounted improbable odds will now have to incorporate the pervasive institutionalisation of legal disputation against State power.¹⁰

III. CONSTITUTIONAL TENSIONS

In its very design, many of the major tensions that have characterised Indian politics and the formation of the Indian State have actually been codified into law. Some of these tensions are familiar in constitutional law, such as the tension posed by the separation of powers. In India, this tension was centred on the very existence of a text. The formal amendment process, by which Parliament was empowered to amend the text in most instances, coupled with the recognition of judicial review, meant that the Constitution pulled itself in both the direction of written constitutionalism and parliamentary sovereignty.

Rights too navigated competing impulses. If we take the conception of rights, for instance, we find that even within the text these rights have been situated at the axis of two tensions: rights and qualifications. The project of universalism had to negotiate the brutal realities of freedom and partition; the Constitution bears traces of that historical trauma. As regards rights, there was the further innovation in the form of the Directive Principles of State Policy. These were contrasted with the fundamental rights, which unlike the Directive Principles were judicially enforceable. While the Directive Principles suggested that constitutional law was meant to promote substantive welfare outcomes, fundamental rights, as rights classically are, emphasised the importance of means. The recognition of the right to property but also the State's responsibility for land redistribution, for example, placed the tension between means and ends in law.

The debate between centralisation and decentralisation was another source of friction. At the founding, two pressures led to a centralising vision: a concern for the security of society, and the belief that localism was a threat to the emergence of a modern conception of citizenship. The State needed to emancipate individuals; it needed to liberate them from their parochial concerns. Yet, over time there has been a constant clamour for power from below, and a constant pressure to renegotiate power between different levels of government (the Centre and the States; and the States and local bodies). Several constitutional devices, from regional emergency powers to the concurrent list, meant that the tensions between functionalism and participation found constitutional manifestation.

Finally, the Constitution was a charter of individual liberty. It promised freedom for individuals, but it also recognised the salience of community identities, both to redress historical injustices and to protect minorities. This inherently set up a tension in the constitutional project, on matters ranging from affirmative action and reservations to minority

¹⁰ This institutionalisation has received less attention than one might expect in even the most important and sophisticated studies of India's democratic career. See, for example, Ramachandra Guha, *India After Gandhi: The History of the World's Largest Democracy* (Picador 2007); Ashutosh Varshney, *Battles Half Won: India's Improbable Democracy* (Penguin 2013).

educational institutions. Were minorities an exception, or was their recognition simply a heightened effort at equal protection? Did reservations serve to transcend identities like caste, or did they instead consolidate permanent identities? Was the ultimate constitutional project one of power sharing between different group identities, or one built around the liberation from identity?

As the chapters in this Handbook show, the Indian constitutional experience presents rich and fascinating material on how these tensions have worked out.

IV. THE CHARACTER OF INDIAN CONSTITUTIONALISM

1. State Failure

The expanding scope of constitutionalism merits some reflection, and provides an interesting window on to the setting of Indian constitutional law. There are several pressures that have led to an ever-expanding constitutional discourse. For one thing, the Indian Constitution is itself one of the longest constitutions in the world. A striking feature of the founding imagination was a penchant for codification.¹¹ Many routine administrative matters, like service rules for public employees, for example, find their way into the Constitution. The Constitution itself was not just concerned with the rights of citizens, the limits of government power, democracy, or social justice. It was also very much part of a State building project, where the framers wanted to protect many institutions of the State from the vagaries of ordinary politics. It is almost a tautology to suggest that a long constitution will vastly expand the scope of constitutional adjudication. But the expanding recourse to the Constitution was inherent in its length.

The second reason for the expansion of constitutional language was, paradoxically, the opposite. It bears reiterating that India is a poor developing country, with relatively low State capacity.¹² The background condition of State capacity has a great bearing on how constitutional law evolves. Low State capacity expresses itself in many ways. The State does not address citizens' grievances effectively. Often, political gridlock prevents legislation from being enacted. Indian courts are also themselves an example of low State capacity: underfinanced, understaffed, and struggling to keep up with the sheer volume of demands placed on them. But society's demands and sufferings cannot wait for the glacial pace of change in State capacity. Courts have often found themselves mediators between this vast array of

¹¹ See Madhav Khosla, 'Modern Constitutionalism and the Indian Founding' (draft on file with authors).

¹² See generally, Devesh Kapur and Pratap Bhanu Mehta, 'Introduction' in Devesh Kapur and Pratap Bhanu Mehta (eds) *Public Institutions in India: Performance and Design* (Oxford University Press 2005) 1; Lant Pritchett, 'Is India a Flailing State? Detours on the Four Lane Highway to Modernization' (HKS Faculty Research Working Paper Series RWP09-013, John F. Kennedy School of Government, Harvard University 2009) <http://www.hks.harvard.edu/fs/lpritch/India/Is%20India%20a%20Flailing%20State_v1.doc>, accessed October 2015.

demands and low State capacity. They have had to step in where other institutions could have done the task; they have had to craft remedies in the absence of any administrative backup; they have had to bear the weight of sending a signal that the Indian State has some forum where it responds to human suffering and injustice.

Many of the innovations and peculiarities of Indian constitutional law come from these demands: necessity is indeed the mother of invention. The public interest litigation movement, for example, where courts relaxed the rules of standing for litigants and often intervened in matters of public interest that normally should have been within the domain of the executive, is one such example of innovation. Another example is the fact that India has a very underdeveloped system of tort law. Tort law requires not just background legislation, but also a sophisticated State apparatus that can adjudicate claims. In the absence of available tort remedies, courts have had to use constitutional remedies to provide relief that would normally have been available in tort law. Or faced with severe cases of breakdown of administrative accountability of the executive, courts have often taken recourse to constitutional law to craft remedies. If judicialisation has been one of the major themes in recent Western constitutional theory, constitutionalisation appears to be the phenomenon most visible in India.

This attempt to use constitutional law to compensate for massive State failure is not without its costs. Some argue that it is somewhat paradoxical that an already overburdened Supreme Court would choose to take on greater burdens by stretching constitutional law in this way. It invites scepticism about constitutional law in two ways. First, there is the scepticism whether Indian law too easily breaches the boundaries between constitutional and other forms of law. This introductory chapter is not the place to settle this debate. Many contributors offer different points of view on this matter. But what is of interest is the way in which the Indian material opens up a new inquiry into how the domain of constitutional law is conventionally defined; what are the forces that explain its scope and reach. Secondly, it opens the question of the extent to which providing constitutional remedies can effectively compensate for State failure. Many critics have pointed out that the Supreme Court's reliance on stretching constitutional law—by discovering new rights, for example—is relatively ineffective in addressing the sufferings it purportedly claims to address. Often the grandiosity of constitutional doctrine is not matched by the strength of the remedies. But, regardless, the Indian experience provides a fascinating window on the possibilities and limits of constitutional discourse in bringing about substantive justice. It demonstrates the ways in which constitutional doctrine is shaped by background institutional capacity, not just by normative or formal legal considerations.

2. Design and Structure

The coherence and stability of a body of constitutional law also depends on the character of the institution from which it emanates. In countries like India, with a written constitution that provides for judicial review, that institution is the judiciary. The American constitutional experience has shown that constitutional courts where judges have extremely long tenures, and the modes of appointment depend on direct accountability to the political executive, will produce a certain kind of jurisprudence. We can expect political cleavages or political philosophies to be very clearly expressed. We can also expect them to be articulated in strikingly consistent terms over the lifetime of decisions.

The Indian Supreme Court looks very different in comparison. Historically, appointments to the Court have had very little to do with the political ideology of individual judges. There is a relatively high turnover of judges; the judges do not sit *en banc* but on separate benches; cases which make it to large constitutional benches are often a function of the exercise of power by a small group of judges; such benches are often constituted at the discretion of the Chief Justice; and finally the identity of the Court itself is complicated by its dual appellate and constitutional roles. In such an institutional setting, there is not as much internal coherence in constitutional jurisprudence as we would like to see. The system as a whole also lacks the classic rule of law characteristics—consistency, a strict application of *stare decisis*, and so forth. The extent to which this worry is real or imagined is a matter of debate, and varies across different areas of law. But it does mean that internally within the court system, Indian constitutional law is probably shaped by more judges than is the case in any other jurisdiction.

Another feature of the Indian case has been the position of the Supreme Court in comparison with the High Courts. In matters of day-to-day justice, both in terms of access and ease of disposal, there has always been a major concern about the Indian judiciary's capacity to deliver. One of the ways in which the Supreme Court has tried to compensate for potential miscarriages of justice is by increasing its jurisdiction and by a liberal approach towards admitting appeals from lower courts, thereby implicitly diminishing their constitutional status and role. This has been made possible, in part, by the constitutional text itself, which allow the Supreme Court to exercise jurisdiction on a range of grounds. The credibility of the Indian system rests much more on the Supreme Court than it does on other courts. In the long run, we might find that what seems like a compensatory mechanism against State failure can also exacerbate it. But the more important point is that the legitimacy of constitutional law has come to be invested in the Supreme Court.

The development of constitutional law is almost invariably viewed externally—that is, in how it interacts with other institutions—but several chapters in this Handbook demonstrate that internal features cannot be ignored in the Indian case.¹³ The aforementioned features of India's constitutional system may certainly mean greater incoherence and instability. Yet, they also have the potential advantage of ensuring that the judiciary is never captured by particular ideological tendencies; and, even if it is, the capture is short-lived. One expects far more suspense in Indian constitutional adjudication. While that may not be conducive to the stability of doctrine, it may well have helped to secure the stability of the system as a whole.

3. Law and Democracy

One standard way of describing the evolution of Indian constitutional law is as a transition from black letter law to a more structural reading of legal materials.¹⁴ A second way has been

¹³ Another kind of internal courtroom dynamic that deserves more attention, both in India and elsewhere, is the interaction between lawyers and judges. In many ways, the articulation of constitutional law takes place through a judge–lawyer dialogue—not just a dialogue between the judge and other branches of government—and attention towards the practice of constitutional advocacy can help shed light on this phenomenon. Unfortunately, no chapter in this Handbook is devoted to this task.

¹⁴ See SP Sathe, 'India: From Positivism to Structuralism' in Jeffrey Goldsworthy (ed) *Interpreting Constitutions: A Comparative Study* (Oxford University Press 2007) 231. Sathe's thesis is in part about

to see it as a product of political compromise and negotiation.¹⁵ While both these outlooks have much in their favour, neither fully captures the relationship between law and democracy in India. Indian constitutional law is not simply the site of a preconceived normative yardstick, nor is it a distinctive form of reasoning we can call purely legal, or a mask merely covering hidden political acts and agendas. Rather, it has always been marked by the need to take into consideration not just its inner structural coherence, but also the way in which law will be rendered legitimate in society.

In such a context, one aspect that shapes constitutional doctrine is the idea of compromise. A constitutional culture can be subject to three kinds of compromises. The first is a compromise between norms and social forces. In examining doctrine we are tempted to ask how the logic of a particular normative principle or the text of a statute plays itself out in constitutional adjudication. But the particular way that our understanding of a normative principle or a statute is shaped can itself reflect something deeper: it can reflect a compromise of competing social forces. The tension between the normative and realist reading of constitutional law, between the logic of moral claims and the logic of social forces, has been a feature of all constitutional law scholarship. The second kind of compromise can be a compromise between competing and sometimes incommensurable values. Should individual rights or group rights be given equal normative weight? Sometimes these compromises are enshrined in a constitution itself. The third kind of compromise often arises in the context of judging the suitability of law to particular situations, where there are differing assessments of what the *consequences* of law might be. This is a compromise forced, as it were, by a gap between an assessment of social reality and desired norms.

What makes this Handbook interesting is that, unusually for a book on constitutional law, the chapters *thematise* the issue of constitutional compromise, and in doing so open up a new and interesting way of looking at constitutionalism. The idea is not so much to say that Indian constitutional law does not aim for coherence or principle; the activity of litigants and judges would be unintelligible without some such presumption. But the chapters are striking in capturing the degree to which constitutional law is shaped by the necessity for all three kinds of compromises. These compromises are not dilutions of the constitutional agenda; they are a means of advancing it. The judgement on the nature of these compromises varies. Some scholars think these compromises give Indian constitutional law an unusual degree of heterogeneity; others think they provide creative ways of reconciling competing demands in ways that keep the constitutional project alive and expand its reach. They faithfully reflect the need to build legitimacy for a constitutional project in a diverse society.

At one level, it is easy to argue that the Supreme Court has become the final arbiter of the Constitution; it can even pronounce duly enacted constitutional amendments

constitutional evolution and in part about the practices of constitutional interpretation. While dated, the most important study of the latter theme in the Indian context remains P Tripathi, *Spotlights on Constitutional Interpretation* (NM Tripathi 1972).

¹⁵ See Granville Austin, *Working a Democratic Constitution: A History of the Indian Experience* (Oxford University Press 2003). For a more nuanced account of the interaction between law and politics (though limited to specific decades), see Upendra Baxi, *The Indian Supreme Court and Politics* (Eastern Book Company 1980); Upendra Baxi, *Courage, Craft, and Content: The Indian Supreme Court in the Eighties* (NM Tripathi 1985).

unconstitutional if they violate the basic structure of the Constitution. But, as these chapters also demonstrate, the competition over who is the final custodian of the Indian Constitution remains very much an open question. The Constitution has evolved through both partnership and contestation between different branches of government. The Supreme Court, may, on occasion, draw a red line through what legislatures can do; it can claim adjudicatory supremacy. But equally the legislature can deeply transform the shape of the Constitution, as it has done through a hundred amendments. Importantly, however, the Constitution is not solely shaped by duly instituted branches of government. Both legislatures and courts also respond to what might be understood as their readings of popular constitutionalism. There is a productive tension between the formal and legalistic understandings of constitutional law and the popular expectations and demands on constitutional law.¹⁶ As Ambedkar had envisaged, constitution is not just a noun; it is also a verb. It is co-produced by the collaboration and participants of different actors, where any claims to authority will always be contested.

If this is correct, then one needs to see the actors in a democracy as participants in a dialogue on public reason. It is often asked what canons of reasoning discipline judges. Are they bound by normative considerations they import into interpretations? Are they bound by theories of interpretation? As constitutional law has expanded in scope and thickness, these questions are raised with even more urgency. One way of thinking of proper judicial behaviour is to invoke a set of formal considerations. On this view there are certain formal restraints on judicial behaviour. Judges are bound by the text of the constitution. In traditional legal conceptions, courts are disciplined by a set of formal techniques. These techniques also form the basis of the authority of their decisions. Despite their ubiquity, however, these are not so much normative constraints on judicial behaviour as they are forms in which judges express their opinions. Constitutionalism is a practice that is constantly being created and recreated through the actions of concrete agents, including judges.

If Ambedkar is right, then the idea of constitutional morality cannot be reduced to pure normativity, on the one hand, or pure legal form, on the other. Instead, his emphasis on public criticism, and the need to maintain the conditions for it, points to a different role for constitutional law. It is not the site for dialogue between different branches of government. It is simply a node in a conversation between law and democracy. The effort at public reason involves judges thinking of the legitimacy of their own decisions. Apart from formal legal techniques—the engagement with precedent, texts, etc—the task involves thinking what reasonable people would accept and agree upon. This is not crude consequentialism, where judges simply gauge which decisions people would obey, but rather a genuine inquiry into what reason demands against extraordinary background social pressures. It is an effort to bridge the gap between representation and legitimacy. The compromise that occurs is a compromise aimed at deepening the constitutional project.¹⁷

¹⁶ See Upendra Baxi, 'Outline of a "Theory of Practice" of Indian Constitutionalism' in Rajeev Bhargava (ed) *Politics and Ethics of the Indian Constitution* (Oxford University Press 2008) 92.

¹⁷ For an elaboration of the Supreme Court's role in democratic engagement, see Pratap Bhanu Mehta, 'The Indian Supreme Court and the Art of Democratic Positioning' in Mark Tushnet and Madhav Khosla (eds) *Unstable Constitutionalism: Law and Politics in South Asia* (Cambridge University Press 2015) 233.

V. CODA

The study of Indian constitutional law has proceeded, by and large, in two ways. One way to approach the field has been through careful and technical analyses of legal doctrine, aimed largely at the legal profession. The last definitive contribution of this kind was the fourth edition of HM Seervai's multi-volume *Constitutional Law of India*, which appeared nearly two decades ago.¹⁸ Another mode of engagement with the field has been more academic in nature. It has ranged from monographs and books to edited volumes and journal articles. Despite the richness and brilliance of several academic contributions, this scholarly literature has been somewhat disorganised. It has struggled to receive institutional anchoring, has ebbed and flowed with the passage of particular scholars, and has focused on certain areas of constitutional law, while largely ignoring others. As a result, Indian constitutional law has found it hard to consolidate as a field of intellectual inquiry. One ambition of this Handbook is to remedy this misfortune. The chapters in the Handbook are not burdened by a specific editorial outlook. Each chapter aims to provide a comprehensive picture of the legal position, but also to articulate the individual author's distinctive voice and perspective. We hope that this will allow for the chapters to be both a resource and a source of debate.

That debate will involve both the descriptive character and prescriptive ambition of Indian constitutionalism. How is India's constitutional journey to be judged? India's Constitution has provided some kind of an enduring framework. The fact that intense social conflicts are resolved through constitutional means must be regarded as one of its major achievements. It has seen limited but clear moments of breakdown, namely, the Emergency of 1975–77 and the use of regional emergency powers; periods during which constitutional morality has been kept in abeyance. Constitutional success might also be considered through the lens of social change. Here the record is less promising. Putting aside the methodological question of how much a constitution can compensate for exogenous factors, has the Indian Constitution served the task of social transformation? While it has certainly led to democratic empowerment and the inclusion of certain marginalised groups in society, it is less clear whether it has contributed in a substantive way to redressing structural inequality or served as a consistent, overarching weapon against discrimination. Similarly, if we focus on the outcome of particular institutions like the Supreme Court, we can acknowledge limited success. The Court has often played a crucial part in changing the public discourse on particular matters, but it is not certain that it has had any major systemic impact. The question of success and failure is, in part, a question of what we expect from constitutionalism and what we hope for it to achieve. Important as this question is, it should not distract us from the importance of the cementing of constitutionalism. One of the things that helps constitutionalism to take root is a critical culture of constitutional argument. The heartening news is that, whatever our individual yardsticks for measuring success and failure may be, the chapters in this Handbook confirm that constitutional argument in India is intense, diverse, and alive.

¹⁸ HM Seervai, *Constitutional Law of India*, vols 1–3 (4th edn, Universal Book Traders 1991–96).

PART I

HISTORY

CHAPTER 2

CONSTITUTIONAL ANTECEDENTS

ROHIT DE

I. INTRODUCTION

WHAT are the antecedents of the Indian Constitution? For some, such as the Supreme Court of India, the answer is simple. It described the coming into force of the Constitution as the moment at which:

[T]erritorial allegiances were wiped out and the past was obliterated...at one moment of time the new order was born with its new allegiance springing from the same source for all, grounded on the same basis: the sovereign will of the peoples of India with no class, no caste, no race, no creed, no distinction, no reservation.¹

While the Constitution did usher in a new order, its claims to have obliterated the past remain unconvincing, even to contemporary commentators. The Constitution text contained aspects of imperial charters and colonial legislation, and in several cases reproduced sections verbatim.

Therefore the question of origin remains a fraught one. Traditionally, constitutional historians have traced the antecedents of the Constitution through a series of British colonial legislation that laid down the architecture of the State and introduced limited forms of representative government.² This canon produces a Whiggish narrative, where Independence and the republican Constitution appear to inevitably succeed the various colonial reforms, echoing British liberal justifications of imperialism as training Indians for self-rule.³ The

¹ *Virendra Singh v State of Uttar Pradesh* AIR 1954 SC 447 [28] (Vivian Bose J).

² For a representative sample, see MV Pylee, *Constitutional History of India 1600–1950* (Asia Publishing House 1967); AB Keith, *A Constitutional History of India 1600–1935* (Methuen and Co 1969); M Rama Jois, *Legal and Constitutional History of India* (NM Tripathi 1984); VD Kulshrestha, and BM Gandhi (ed), *V.D. Kulshrestha's Landmarks in Legal and Constitutional History of India* (5th edn, Eastern Book Company 1995).

³ Sumit Sarkar, 'Indian Democracy: The Historical Inheritance' in Atul Kohli (ed), *The Success of India's Democracy* (Cambridge University Press 1991) 23–46.

Constitution's perceived antecedents draw the ire of both the Right and the Left. Liberals and the political Left point to the structural and institutional continuities between the colonial State and the post-colonial, and argue that despite the institution of adult suffrage the constitutional order rests on the logic of authoritarianism.⁴ Organisations on the Hindu Right, pointing to these same provisions, have attacked the Constitution for being alien and inauthentic as it imposes structures developed by the British upon India. These anxieties about antecedents were reflected in the closing debates in the Constituent Assembly when members worried that the Constitution would fail as it was made by the 'slavish imitation' of Western constitutions.⁵ K Hanumanthaiyya summed up the mood as he regretfully said, 'we wanted the music of *Veena* or *Sitar*, but here we have the music of an English band'.⁶

This chapter departs from traditional narratives of constitutional antecedents in three ways. First, it treats the Constitution as a set of interactions between constitutional texts, constitutional aspirations, and the quotidian practice of constitutional law.⁷ In treating the Constitution as a set of heterogeneous practices and expectations rather than a succession of legislation we avoid the teleological narratives of both the State and Indian nationalism, emphasising the contingency of events and the reception of ideas. As Arvind Elangovan has argued, the conflicts over the Constitution in its first two decades require us to shift the idea of the Constitution as a product of grand 'consensus underwritten by nationalism' to that of the Constitution as a product of a series of conflicts, several which were unresolved.⁸ Finally, this chapter examines both aversive and aspirational borrowings, to recognise alternatives that were available but consciously rejected.⁹

The chapter opens with a critical reading of the various texts (charters and legislation) that emanated from above and established the architecture of power in colonial India from 1600 to 1948. The second section provides an overview of the various attempts by Indian groups to draw up constitutions or articulate claims against the State. Finally, the third section looks at constitutional practice examining legal strategies and judicial review in colonial India.

⁴ The position is best encapsulated by Ayesha Jalal, *Democracy and Authoritarianism in South Asia: A Comparative and Historical Perspective* (Cambridge University Press 1995); Oishik Sircar, 'Spectacles of Emancipation: Reading Rights Differently in India's Legal Discourse' (2012) 49(3) *Osgoode Hall Law Journal* 527.

⁵ *Constituent Assembly Debates*, vol 7 (Lok Sabha Secretariat 1986) 212, 5 November 1948 (Damodar Swarup Seth). The term 'slavish imitation' gained some currency among critics in the Constituent Assembly and was used a few times. See also *Constituent Assembly Debates*, vol 7 (Lok Sabha Secretariat 1986) 349, 9 November 1948 (Raj Bahadur).

⁶ *Constituent Assembly Debates*, vol 11 (Lok Sabha Secretariat 1986) 616, 17 November 1949.

⁷ Upendra Baxi, 'Outlines of a Theory of Practice of Indian Constitutionalism' in Rajeev Bhargava (ed) *Politics and Ethics of the Indian Constitution* (Oxford University Press 2009) 92–118.

⁸ Arvind Elangovan, 'The Making of the Indian Constitution: A Case for a Non-Nationalist Approach' (2014) 12 *History Compass* 1. For the consensus model of constitution making, see Granville Austin, *The Indian Constitution: Cornerstone of Nation* (New Delhi: Oxford University Press 1966) and Sarbani Sen, *The Constitution of India: Popular Sovereignty and Democratic Transformations* (New Delhi: Oxford University Press 2007).

⁹ Kim Lane Scheppele, 'Aspirational and Aversive Constitutionalism: The Case for Studying Cross-Constitutional Influence through Negative Models' (2003) 1(2) *International Journal of Constitutional Law* 296.

II. CONSTITUTIONAL TEXTS

1. The Age of Charters

Historians of British and American constitutionalism have focused on a particular transformation, the shift from an organic, unwritten constitution to a definite and written one. In contrast, modern constitutionalism in India begins with a written text on a precise date: 31 December 1600, the day that Queen Elizabeth granted a Charter to a company of London merchants to trade with the East Indies. Charters were grants of perpetuity in Latin addressed to a particular group and kept as a permanent record. The Charter of 1600 delegated both legislative and judicial powers to the governor appointed by the English East India Company (EEIC) in India ‘for the better advancement and continuance of said trade and traffick...’ including the power to administer criminal law. Since the Company was formed for maritime trade rather than territorial administration, many of the powers of the EEIC officials derived from the absolutism of martial law and naval discipline, including the power to make emergency regulations.¹⁰ As the EEIC’s territorial control expanded, new charters granted them powers of full territorial jurisdiction, including the powers to issue coinage, administer justice, and punish interlopers. Importantly, the charters incorporated a principle of repugnancy by requiring that all company laws had to be ‘reasonable’ and not contrary to the laws and customs of the English realm.

The Charter had only granted the Company the jurisdiction over English subjects, but it soon found itself dealing with claims of Indians. Recent scholarship has described the formation of an imperial legal culture over the seventeenth century through conflicts between Parliament, the Crown, and the EEIC as English subjects challenged the authority of the Company, and Indian litigants sought to take advantage of English law and rhetoric.¹¹ Initially the residents of the EEIC territories found that they had limited options. The Company enjoyed wide latitude over civil and criminal justice, and unlike the American colonies, made no procedural rules or appeals to the Privy Council.

The EEIC’s growing power raised concerns within the British Parliament, particularly because of the Company’s close association with the monarchy. Parliament sought opportunities to check the independent legal authority of the Company, and by the early eighteenth century forced a new constitution upon the Company.¹²

The Charter of 1726 established an ‘Anglo-centric’ legal order in Madras, Bombay, and Calcutta, which brought the Indian territories firmly into the British legal world.¹³

¹⁰ Arthur Mitchell Fraas, ‘*They Have Travailed into a Wrong Latitude*’: *The Laws of England, Indian Settlements and the British Imperial Constitution 1726–1773* (unpublished dissertation, Duke University 2011) <<http://dukespace.lib.duke.edu/dspace/handle/10161/3954>>, accessed October 2015.

¹¹ Arthur Mitchell Fraas, ‘Making Claims: Indian Litigants and the Expansion of the English Legal World in the Eighteenth Century’ (2014) 15(1) *Journal of Colonialism and Colonial History*.

¹² Philip Stern, *The Company-State: Corporate Sovereignty and the Early Modern Foundations of the British Empire in India* (Oxford University Press 2011).

¹³ Arthur Mitchell Fraas, ‘*They Have Travailed into a Wrong Latitude*’: *The Laws of England, Indian Settlements and the British Imperial Constitution 1726–1773* (unpublished dissertation, Duke University 2011) <<http://dukespace.lib.duke.edu/dspace/handle/10161/3954>>, accessed October 2015.

It explicitly provided that the law of the Company settlements in India was to be that of England, to the extent that circumstances would permit. It set up mayor's courts headed by aldermen who were tenured for life, guaranteeing a degree of independence and explicitly provided for appeals to the Privy Council.¹⁴ These courts were instructed to make their decrees according to 'justice and right'. The Charter also granted EEIC governors legislative powers akin to those enjoyed by royal governors in America, which were subject to the approval of the EEIC directors in London and not repugnant to the laws and statutes of England. As the growth of litigation against the Company in its own courts indicates, by the late seventeenth century, there was a growing belief across British territories that a publicly available printed charter was both a source and a limit of governmental authority.¹⁵

The EEIC struggled to contain the behaviour of the courts in India, as neither the officials in India nor the directors in London retained any power to overturn decisions or to change legal practices. Structural factors, like distance, also played a role; the mayor's court often reached its verdict well before legal advice from London reached India. Unlike other EEIC officials who were bound by their employment contracts to obey the directors of the Company, judicial officials, particularly members of grand juries (which occasionally included Parsi, Hindu, and Indo-Portuguese residents) were not. As Fraas has painstakingly shown, these bodies frequently protested deviations from authority and procedure laid down within the Charter. For instance, the grand jury in Calcutta frequently released prisoners being held without trial by the Governor, delivering scathing rebukes for violating terms of the Charter.¹⁶ While the conflicts were framed as a tension between English law and liberties and the Company's authority and local practices, Fraas demonstrates how the courts were less concerned with strict application of English law than with shoring up the authority and independence of the mayor's courts.¹⁷

It is important to note that despite the Charter, the impetus towards creating a constitutional order did not come from above. Neither Parliament nor the Privy Council sought to impose the new constitutional principles upon the Company administration; instead, it developed from litigants who determined the issues that were to be contested.

2. Parliamentary Control and Mughal Constitutionalism

The English victory at Plassey in 1757 caused the first major disruption to this imperial constitutional order. With the grant of the Diwani of Bengal, Bihar, and Orissa, the EEIC found its powers dependent on two sources of authority, through a Charter by the British Crown

¹⁴ John F Shaw, *Charters Relating to the East India Company from 1600–1761* (Madras Government Press 1887) 232.

¹⁵ Mary Sarah Bilder, 'Colonial Constitutionalism and Constitutional Law' in Daniel W Hamilton and Alfred L Brophy (eds) *Transformations in American Legal History: Essays in Honor of Professor Morton J. Horwitz* (Harvard University Press 2009) 28–57.

¹⁶ Arthur Mitchell Fraas, 'They Have Travailed into a Wrong Latitude': *The Laws of England, Indian Settlements and the British Imperial Constitution 1726–1773* (unpublished dissertation, Duke University 2011) 302–04 <<http://dukespace.lib.duke.edu/dspace/handle/10161/3954>>, accessed October 2015.

¹⁷ Arthur Mitchell Fraas, 'They Have Travailed into a Wrong Latitude' *The Laws of England, Indian Settlements and the British Imperial Constitution 1726–1773* (unpublished dissertation, Duke University 2011) 309 <<http://dukespace.lib.duke.edu/dspace/handle/10161/3954>>, accessed October 2015.

and as a vassal of the Mughal emperor. Successive military victories transformed the EEIC territories from a clutch of cities and factories to a large landed power. The EEIC's military successes in India corresponded with fiscal problems in London and gave the British Parliament an opportunity to restructure the EEIC government in India to check 'abuses in administration'. The Regulating Act of 1773 introduced three fundamental changes that would set a path of dependency for the Indian administrative framework. First, it transformed the relationship between the three presidencies by placing Bombay and Madras in subservience to Bengal. Previously, each presidency lay with the Governor-General in Calcutta. This gives India a longer history of local centralised authority when compared to the British colonies in North America, Africa, and Australia. Secondly, it formalised the idea of cabinet government by vesting authority with the Governor-General and his council of four. The original Act named the first four councillors, the majority of whom were known political opponents of the Governor-General. By limiting the term of the Governor-General and his councillors to five years, it gave British parliamentary convention statutory authority.¹⁸

Finally, section 13 of the Regulating Act established a Supreme Court of judicature at Fort William which, apart from the civil, criminal, ecclesiastical, and admiralty jurisdiction, also had the jurisdiction to 'hear and determine all complaints against any of His Majesty's subjects for any crimes, misdemeanours, or oppressions... and also to entertain, hear and determine any suits or actions whatsoever, against any of His Majesty's subjects ...'¹⁹

The wide jurisdiction of the courts set the stage for political conflict between the Supreme Court and the EEIC. The Supreme Court now had a mandate to govern matters relating to all British subjects and Company employees (which included Indians). There was considerable ambiguity over the definition of a Company employee, which allowed Indians who were not British subjects to take action against the Company. As Lauren Benton has shown, many Indians attempted to defeat local representatives by appealing to more distant authorities like the Supreme Court in Calcutta, and in the process simultaneously challenging and strengthening the legitimacy of the colonial State. These repeated appeals helped strengthen a legal authority that was removed from both metropolitan power and the need to derive legitimacy from local politics.²⁰

The period from 1781 to 1833 saw a constant legislative battle to secure parliamentary control over the EEIC and the Indian territories. Searching for new principles that could resolve the anomalous situation of a private company exercising sovereignty overseas, partisans of both sides used Mughal constitutionalism (or what they assumed was Mughal constitutionalism) as a guide for the colonial State.²¹ Warren Hastings, attempting to shore up the authority of the Company-State, argued that its absolute powers were premised on a notion of Mughal absolutism, and argued that all property rights to land ultimately vested in the EEIC as the successor to the Mughal emperor. Philip Francis, Hastings' opponent on the council and later in Parliament, recognised Mughal despotism but argued that it was not

¹⁸ Regulating Act 1773, s 10.

¹⁹ Regulating Act 1773, s 14.

²⁰ For a detailed discussion of the case and its implications for jurisdictional politics, see Lauren Benton, 'Colonial Law and Cultural Difference: Jurisdictional Politics and the Formation of the Colonial State' (1999) 41(3) *Comparative Studies in Society and History* 563.

²¹ Nitin Sinha, 'Continuity and Change: The Eighteenth Century and Indian Historiography' (2012) 2 *South Asia Chronicle* 416.

arbitrary, and that private property rights existed under Mughal benevolence.²² Scholars have suggested that when legal appeals to classical Rome and the Anglo-Saxon past were ideologically exhausted, Burke turned towards Indo-Islamic republicanism as an alternative source of constitutional legitimacy. Edmund Burke, in his opposition to Hastings, argued that Mughal rule was not despotic but was stable and had a legal basis for governance, and challenged Hastings' use of Mughal constitutionalism as a cloak for arbitrary authority. Francis and Burke echoed contemporary Whiggism in their defence of the rights of the Indian nobility and landowners, which were based on very poorly understood notions of Islamic law and Mughal governance.²³

The Acts of 1781 and 1784 and the Charters of 1813 and 1833 gradually marginalised the role of the EEIC in governing India and placed governance structures under strict parliamentary scrutiny. The cabinet government imagined in the 1773 Act was diluted when an amendment in 1793 provided that the Governor-General and provincial governors could act in extraordinary cases without the concurrence of the Council, inasmuch as that power would 'tend greatly to the strength and security of the British possessions in India, and give energy, vigour, and despatch to the measures and proceedings of the executive government...'²⁴ This clause essentially gave Governor-Generals enormous powers to act independently, which individuals like Lord Cornwallis and Wellesley used to expand territory and transport local administration.

It also gave statutory recognition to the personal laws of Indians, by requiring that the Supreme Court's jurisdiction over Indians would be on condition that 'their inheritance and succession to lands, rents, and goods, and all matters of contract and dealing between party and party, shall be determined, in the case of Mahomedans, by the laws and usages of the Mahomedans and where the parties are Gentus, by the laws and usages of the Gentus ...'²⁵

The increased parliamentary control from London was balanced with the reduction of judicial opposition in India. Under the Act of 1781, the Governor-General and his Council were exempt from the jurisdiction of the Supreme Court for all Official Acts.²⁶ The power of the Supreme Court to intervene in questions of revenue was also strictly contained,²⁷ a feature that would now continue until 1947. The tribunals run by the EEIC were formally recognised by Parliament and in 1813, an attempt was made to amalgamate the Company and Crown courts. Similar conflicts would play out with the establishment of the Supreme Court of Bombay in 1823, which culminated in Governor Elphinstone challenging the Chief Justice to a duel, and the entire Supreme Court going on strike when the government refused to obey its writs of *habeas corpus*.²⁸ Lord Macaulay charged the Supreme Court for creating 'a reign of terror, heightened by mystery... it consisted of judges not one of whom was familiar with the usages of millions over whom they claimed boundless authority... no

²² Robert Travers, *Ideology and Empire in Eighteenth Century India* (Cambridge University Press 2007) 218.

²³ Humberto Garcia traces the circulation of Sale's 1720 translation of the Quran to explain what Burke and his contemporaries understood Islamic law to be. Humberto Garcia, *Islam and the English Enlightenment: 1670–1840* (Johns Hopkins University Press 2012) 96–108.

²⁴ 1793 (33 Geo 3 c 52), s 47.

²⁵ 21 Geo 3 c 70, s 17.

²⁶ 21 Geo 3 c 70, s 1.

²⁷ 21 Geo 3 c 70, s 9.

²⁸ PB Vachha, *Famous Judges, Lawyers and Cases of Bombay: A Judicial History of Bombay During the British Period* (NM Tripathi 1962) 191–99.

Mahratta had ever spread through the province such dismay as this inroad of English lawyers.²⁹ The challenge posed by the courts was sought to be redressed by the introduction of a law member in the Governor-General's Council, who would be conversant in common law, and would ensure that legislation was free of defects. The Law Member was imagined as a constitutional authority located within the executive. The push to codify civil and criminal procedure was partly to discipline wayward judges and courts.

Was constitutionalism in India between the eighteenth and early twentieth centuries entirely a discourse between the English? In terms of practice, cases and appeals brought by Indian litigants were instrumental in putting the system into operation, and petitions to Parliament spurred figures like Burke into action. At the level of ideas, there is only limited evidence of competing indigenous ideas of constitutionalism. However, Ghulam Hussain Tabatabai's contemporary account of the decline of Muslim power and the rise of the British in Bengal, provides a few interesting fragments of what Indians thought of British administration. Ghulam Hussain argues for a comparable notion of an 'ancient constitution', noting that all conquering powers had absorbed an established structure and practices which even ideologically driven rulers like Aurangzeb did not tamper with. The English appeared to be ignorant of these rules (or chose not to follow them), thus depriving people of the benefits of governance.³⁰ Partha Chatterjee notes that Ghulam Hussain's concept of Mughal political tradition lay not in a theory of sovereignty but in the function of government in looking after the people, a task that Hussain believed the English had ignored.³¹

3. The Viceregal Age: Petitioning and Representation

In November 1858, Queen Victoria was proclaimed Empress of India and the Indian territories brought under direct control of the British government in London. The Proclamation went on to assure native princes that their treaties would be 'scrupulously maintained'; present territorial possession would not be extended; all natives in Indian territories would enjoy the same privileges as all British subjects; anyone, irrespective of their race or creed, could be admitted to offices; all religious observances would enjoy equal and impartial protection of law and there would be no interference with religious practice; and the Proclamation assured her subjects that 'all rights' connected with land inherited from their ancestors would be protected and in framing laws due regard would be paid to 'the ancient rights, usages and customs of India.' The Proclamation of 1858 had sought to address the perceived causes of the revolt of 1857, securing the loyalty of the princes and zamindars, as well as addressing fears of interference with religious and social matters.

However, the Proclamation took on a life of its own and was frequently referred to as a 'magna carta' by Indians in various walks of life. Glimpses of the Queen's Proclamation

²⁹ Thomas Babington Macaulay, *Critical and Historical Essays, Contributed to The Edinburgh Review*, vol 3 (Longman, Brown, Green, and Longmans 1852) 388.

³⁰ Ghulam Hussain Khan Tabatabai, *Siyar-ul-Mutakhkherin or a View of Modern Times, Being a History of India from Year 1118 to 1195*, vol 3, tr Hajee Mustafa (1780).

³¹ See discussion of Ghulam Hussain's work in Partha Chatterjee, *The Black Hole of Empire: History of a Global Practice of Power* (Princeton University Press 2012) 83–84.

appear in more informal settings; for instance in 1884 Dennis Fitzpatrick, the Lt Governor of Punjab, reported that 'a Mussulman' quoted constitutional principles at him demanding that he overturn an order by a district magistrate that placed a local ban on cow slaughter. The petitioner argued that the 1858 Proclamation protected his right to slaughter cattle for religious purposes.³² Almost half a century later, Muslim groups from Mysore petitioned the Viceroy asking him to intervene to overturn legislation by the Mysore Assembly banning cow slaughter on the grounds that it violated the 'Magna Carta of Queen Victoria'.³³ These arguments carried a lot of political traction with the executive but had little impact before the courts of law. In *Queen Empress v Tegha Singh*, the temple custodians who had been arrested for violating the Arms Act by storing weapons in the temple premises argued that the Arms Act violated the Queen's Proclamation of 1858 that guaranteed no one would be molested by reason of their religious faith or worship. As the High Court had acknowledged that the firearms in question were worshipped in the temple, the custodians should be exempted from the operation of the Act. The High Court rejected the contention, implying that the Indian legislatures could enact a law in contravention of the Queen's Proclamation.³⁴

Mithi Mukherjee argues that the royal Proclamation was not a shift just in political control but in the discourse of imperial justice itself. She identifies two separate strands: 'justice as equity', which placed the British State in the role of the mediator between various communities in India, and 'justice as liberty', which offered the promise of self-governance in some distant future. These notions of justice are located in the figure of the monarch and not in some form of 'ancient constitutionalism' or natural law.³⁵

These forces were reflected in the emphasis the constitutional changes of the next fifty years placed on questions of representation. The Indian Councils Act of 1861 reconstructed the Governor-General's Council by separating the legislative functions from the executive through the creation of a legislative council, at least half of whose members were required to be non-official persons. The Act also designated that a member be appointed specifically for public works. This separation of powers between the executive and legislature was softened by the requirement that any matters relating to public revenue or debt, religion, military, or naval affairs required *prior* sanction of the Governor-General. All legislation required the Governor-General's assent before being enacted into law.

An attempt was made to decentralise administration by restoring the independent powers of legislation of the Bombay and Madras Presidencies, which had been revoked in 1833. There was also a rudimentary division of legislative subjects between the centre and the provinces, with the requirement that in certain subjects the Governor-General's permission was required before legislating. Further, all local Acts required the assent of the Governor-General as well as the Governor.

³² 'Note on Agitation on the Cow Question: Office of the Assistant to the IG Police, Punjab, Special Branch' ILO: L/P&J/298/1984 (British Library, Asian and African Studies Collection, London).

³³ 'Protest of Mahomedans Against Legislation for the Prevention of Cow Slaughter in Mysore', FN 216/1930 (National Archives of India).

³⁴ *Queen Empress v Tegha Singh* (1882) ILR 8 Cal 473.

³⁵ Mithi Mukherjee, *India in the Shadows of Empire: A Legal and Political History, 1774–1950* (Oxford University Press 2010).

Thus, these reforms provided the promise of freedom but deferred it through strict controls for both quotidian and extraordinary situations. The 1861 Act limited the Governor-General's power to proclaim an emergency to six months. Ironically, the national emergencies were first declared to achieve administrative aims, such as Lord Mayo's imposition of an additional half per cent of income tax, or the exclusion of certain border districts from the jurisdiction of regular courts.

The Indian High Courts Act that was enacted simultaneously in 1861 abolished the troublesome Presidency Supreme Courts and replaced them with High Courts. The reforms were ostensibly intended to create a uniform legal system across the country, and were to be followed by the enactments of the Penal Code, the Code of Civil Procedure, and the Criminal Procedure Code.

Finally, the bureaucracy was transformed with the enactment of the Indian Civil Service Act 1861, which regularised all irregular appointments to the bureaucracy in the past, but now mandated a formal appointment system for members of the covenanted services. Until 1857, the colonial bureaucracy was not a professional body, as it later came to be. Appointments were an important source of patronage for EIC officials and the lucrative nature of the jobs was premised on opportunities for rent seeking. The services were notionally open to all British subjects in India, though the nature of the selection process meant that very few Indians would be eligible.

The carving out of executive, legislative, and bureaucratic spheres was followed by a series of reforms in 1891 and 1909, which sought to increase the representation of Indians within the various councils of government. In 1892, the number of nominated members in the Governor's Councils was increased with a promise of introducing electoral representation in the future. The Indian Councils Act of 1909 (Morley-Minto Reforms) brought into being limited electoral systems to elect some members to the provincial and central legislative councils. While official members (usually bureaucrats) would be the majority in the central legislature, non-official members would be the majority in the provinces. The electoral process reflected a corporatist understanding of Indian society, with members being elected from separate electorates representing particular special interests. While a bulk of these were municipalities and local boards, they also included merchants' chambers and federations of commerce, universities, planters' associations, landlords, and significantly, Muslims. The demand for separate electorates for Muslims had been first articulated in 1906 in a memorial submitted by the Muslim League to the Viceroy.

Can we describe this account of legislative reforms as constitution making? It is important to recognise that all these reforms were prompted by a surging demand from below for greater representation. Unlike the reforms of the previous century, every legislative change was brought about by a vigorous campaign by members of the public. Each reform failed to meet expectations and led to splits between political parties; for instance, dissatisfaction with the changes of 1892 led to the extremist group emerging within the Indian National Congress. As Dietmar Rothmund observes, a curious dialectic began to be established between popular agitation and constitutional reform, with each set of reforms designed to fulfil certain agitational demands, but in the process sparking further agitations.³⁶ Therefore

³⁶ Dietmar Rothmund, 'Constitutional Reform versus Nationalist Agitation in India: 1900-1950' (1962) 21(4) *Journal of Asian Studies* 505.

until 1919, this dialectic of constitutional reform dominated the nationalist movement, evolving a constitutionalist discourse similar to China, Persia, Turkey, and Egypt, which all saw variations of a 'constitutionalist revolution' in the early twentieth century.³⁷

4. The Last Acts of Empire: The Government of India Acts of 1919 and 1935

In a lecture first delivered in 1923, Dr BR Ambedkar told his students:

The Constitution of British India is contained in an enactment called the Government of India Act, 1919. A student of the Constitution of India therefore has not to search for the constitution as the student of the English Constitution has to do. His position is very much like the position of the student of the American Constitution, whose problem is nothing more than to understand and to interpret the statute embodying the Constitution of the United States.³⁸

It is only in the 1920s that we see the popularisation of the notion of Indian constitutional law and its introduction as a separate subject for study in law faculties.³⁹ This was partly due to consolidation. The Government of India Act 1915 finally repealed the unrepealed provisions of over forty-seven Acts going back to 1772 and consolidated them into a single legislation, building in the idea of the Constitution as a single statute.

The Government of India Act of 1919, which codified the Montague–Chelmsford proposals, broke with the earlier reforms in two important ways. First, unlike the Morley–Minto reforms, Edwin Montague categorically stated that this concession to India was with a view to the 'progressive realization of responsible government in India as an integral part of the British empire'.⁴⁰ Recognising that this move could only come in phases, it introduced a system known as 'dyarchy' within the provincial governments. This system divided the areas of functioning into 'transferred' and 'reserved', the former being looked after by ministers responsible to a popularly elected assembly and the latter (more crucial subjects) held by executives. While the Governor was to govern on the advice of the ministers with regard to transferred subjects, he had the discretion of rejecting such advice when he had 'good reason' to.⁴¹

More exclusions from popular rule were built into the reforms as the Montague–Chelmsford report had acknowledged that all provinces contained 'areas where material to

³⁷ Where authoritarian monarchs and colonial governors attempted to pacify restless publics by granting written constitutions, which provided for limited representation but in each case failed to satisfy the majority of the public.

³⁸ BR Ambedkar, 'The Constitution of British India' in *Writings and Speeches*, vol 12 (Government of Maharashtra 1993).

³⁹ See eg, KA Shah and GJ Bahadurji, *A Commentary on the Government of India Act, (Consolidated) of 1919, with Additional Chapters on the Indian Local Governments, Indian Army, Indian Finance, and the Native States in India* (NM Tripathi 1924); MC Chagla, *The Indian Constitution* (Bombay Book Depot 1928); JN Verma and MA Gharekhan, *The Constitutional Law of India and England* (2nd edn, Popular Book Depot 1931).

⁴⁰ C Ilbert and Meston, *The New Constitution of India* (University of London Press 1923) 27.

⁴¹ Stephen Legg, 'Dyarchy: Scalar Geographies of Interwar-India' (forthcoming). I am grateful to Stephen Legg for sharing his unpublished work on diarchy.

build political institutions was lacking' or were seen as 'civilisationally backward'. Provincial governors applied for excluding a variety of territories from the operation of the Act, including almost the entire States of Assam, Orissa, and the Chota Nagpur plateau. Almost all the exclusions applied for were granted. While regimes of exception had existed in colonial India since the eighteenth century, this was the first time the exceptions were codified and made permanent.

Despite the celebratory tenor, the Constitution of 1919 angered both the colonial officials in India and the Indian public. The reforms were followed almost immediately by the draconian Rowlatt Act, which curbed existing rights and remedies under the Penal and Criminal Codes, limited the jurisdiction of courts, and sought to extend the powers of the executive to detain and try political prisoners. Despite the vehement opposition of every non-official member in the legislature the bill was voted into law using the brute official majority. The Rowlatt Act led to popular unrest and the massacre at Jallianwala Bagh, further discrediting the reforms. The first elections held under the 1919 Act were officially boycotted by the Indian National Congress.

While the new legislatures became important venues for debate and critique, diarchy itself failed in practice as government departments were by nature independent and constituted an indivisible unit that was hard to separate. KV Reddi, a minister in the Madras government, would wryly remark that he was the 'minister of development minus forests, minister for industries without factories, electricity or labour and minister for agriculture without irrigation'.⁴² The Reforms Secretary, William Morris, had to admit that they had created a 'cumbrous, complex, confused system having no logical basis... rooted in compromise and defensible only as a transitional expedient. The difficulties in the scheme were quite incurable by mere alterations of acts and rules'.⁴³

Importantly, the Montague-Chelmsford Report had a clause stating that the working of the Act would be reviewed after a period of ten years, making it clear that the constitutional text was not enshrined in permanence. The review commission itself, headed by Viscount Simon and consisting entirely of British members, outraged all shades of political opinion and led to a systematic boycott from major political parties. The report of the Simon Commission in 1929 was followed by three Round Table Conferences, where a variety of Indian leaders from British India and the Princely States were invited to discuss constitutional reforms with British political leadership across parties. Because of the Congress Party's boycott of two of three Round Table Conferences and the heady politics of the civil disobedience movement, the drier discussions in London have been dismissed as of little importance. However, the conferences were important for the first articulation of several new arguments, be it the women's representatives rejecting the idea of reserved constituencies for women or the repeated insistence on a Bill of Rights by the delegations representing women, minorities, and labour.⁴⁴

⁴² Cited from Sachchidananda Sinha, *Dyarchy in Indian Provinces in Theory and Practice* (East India Association 1926) 18.

⁴³ Sachchidananda Sinha, *Dyarchy in Indian Provinces in Theory and Practice* (East India Association 1926) 18.

⁴⁴ The Indian National Congress boycotted the First and Third Round Table Conferences and sent MK Gandhi and Sarojini Naidu as its sole representatives for the Second Conference. As an organisation, the Congress claimed to be the sole representative Indian organisation and challenged the claims of various invitees to speak for 'sectional interests'. It is significant to note that many of the personnel involved

The Government of India Act 1935 was finally enacted amid stiff opposition from the Conservative Party and brought into being the Indian federation comprising both British provinces and the Princely States. The Act reflected many of the recommendations of the Simon Commission, including the idea that the Constitution should contain within itself a provision for its own development, and should not be rigid. Implicit in the notion of constitutional progress was the idea that representative government could only evolve in India through stages. While the Constitution was a statute, the preamble acknowledged that the convention within the British Empire was that the details of the Constitution would not be exhaustively drafted but would develop naturally through conventions or terms of instruction issued from London. It rejected the possibility of temporality defining the stages and said there was no requirement for periodic commissions of inquiry.⁴⁵

Importantly, it removed the system of diarchy for the provinces, increased franchise to about 14 per cent of the population, and provided for popularly elected ministries in the provinces. Significant emergency powers were retained by the Governor to maintain law and order and protect minorities. The Union government was left unchanged, to mollify Conservative opinion, except that the size of the legislative assembly and the franchise were both increased. Significantly, as the third section of this chapter will demonstrate, it established a Federal Court in Delhi, which would have jurisdiction over constitutional questions as well as disputes between provinces.

While agreeing to contest the first provincial elections, the Congress Party denounced the Government of India Act as a 'slave constitution that attempted to strengthen and perpetuate the political and economic bondage of India.'⁴⁶ It charged the creation of the federation as an attempt to maintain British control by checking popular forces with the help of 'reactionary feudal classes,' referring to the powers given to the princes as well as groups like the landlords and zamindars, who were represented in the second chamber. While the members of the Lower House of the central assembly would be indirectly elected from provincial legislatures, the members of the Upper House would be directly elected from special constituencies. Despite the idea of an evolving constitution, the Indian legislatures did not have the power to amend the Constitution, but could only pass resolutions recommending amendments on certain questions, such as the extension of franchise, method of election, etc.⁴⁷ It noted that the assembly envisaged would continue to be a non-sovereign body subject to the British Parliament.⁴⁸ The 1935 Act had greatly expanded the powers of the Governor-General, leading Churchill to remark that it would arouse Mussolini's envy. The Congress noted that the

in the Round Table Conferences would be elected to the Constituent Assembly two decades later. Historians of political thought in India have yet to compare and contrast how their ideas evolved over this period. These figures included Nawab Hamidullah Khan of Bhopal (who as head of the Chamber of Princes negotiated with the assembly), MR Jayakar, BR Ambedkar (Depressed Classes), Homi Mody (Parsis), Maharajah Kameshwar Prasad of Darbhanga and the Nawab of Chhatrri (landlords), B Shiva Rao (labour), Sarojini Naidu (women), and KC Neogy, BN Rau, and CD Deshmukh (who were in attendance as part of the British Indian Delegation staff).

⁴⁵ John Simon, *Report of the Indian Statutory Commission*, vol 2 (HM Stationery Office 1930) 5.

⁴⁶ ZA Ahmad, *A Brief Analysis of the New Constitution: Congress Political and Economic Studies No 3* (Political and Economic Information Department of the All India Congress Committee 1937).

⁴⁷ ZA Ahmad, *A Brief Analysis of the New Constitution: Congress Political and Economic Studies No 3* (Political and Economic Information Department of the All India Congress Committee 1937) 308.

⁴⁸ Government of India Act 1935, s 110.

'new constitution' was worse than that of 1919 because it made explicit many of the emergency powers that were implicit. Not only did the Governors continue to enjoy the power of veto, unlike 1919 they were also given independent powers of legislation.

The Congress also launched a more substantive critique of the Constitution for failing to address questions of economic and social deprivation. While health and education were starved of finances, the top-heavy administration focused on law and order. The 1935 Act made it difficult for elected governments to aid Indian trade or industry and constitutionally protected British financial and trading interests in the country. For instance, the Federal Legislature was given very limited control over the Reserve Bank. The Railways, in which a substantial amount of British capital was invested, were to be controlled by a special statutory body of bureaucrats called the Railway Board. While the 1935 Act had no Bill of Rights, it specifically prohibited laws imposing sanctions upon British subjects domiciled in the UK with regard to either entry into India or to the 'acquisition, holding or disposal of property, the holding of public office, or the carrying on of any occupation, trade, business or profession'.⁴⁹ This effectively created a non-discrimination clause that applied only to British-domiciled persons. Corporate personalities were also protected, with the Act guaranteeing that a company incorporated in the UK would not be subject to Indian company law. British entities were also ensured non-discrimination in questions of taxation and of eligibility for government grants.⁵⁰

The idea of the economy held captive by the Constitution was powerful, given how central economic development was to the nationalist discourse. It is perhaps not coincidental that the Congress Party set up the National Planning Committee in 1940 to focus on State intervention to bring about social and economic development and redistribution.

III. CONSTITUTIONAL ASPIRATIONS

In terms of checking the rising tide of nationalism, the constitutional settlement of 1935 was a spectacular failure. Not only did the princes, the bulwark against the nationalists, refuse to participate in the federation, but also the Congress Party decided to contest elections and performed spectacularly, forming governments in most provinces. Within days of the election, eight provinces and the central legislative assembly had passed a resolution asserting that the Government of India Act 1935 'in no way represents the will of the people' and 'has been designed to perpetuate the subjection of the people of India'. They demanded the repeal of the Act and its replacement by a constitution for a free India framed by a Constituent Assembly elected by universal adult franchise.⁵¹ How does this act of 'constitutional defiance' then fit into a history of the Indian Constitution?⁵²

⁴⁹ Government of India Act 1935, s 110.

⁵⁰ Government of India Act 1935, ss 112, 116.

⁵¹ 'Resolution in Provincial Assemblies Regarding Constituent Assembly' in B Shiva Rao (ed) *The Framing of India's Constitution: Select Documents*, vol 1 (Indian Institute of Public Administration 1966) 93, August–October 1937; 'Resolution in the Central Assembly Regarding the Constituent Assembly' in B Shiva Rao (ed) *The Framing of India's Constitution: Select Documents*, vol 1 (Indian Institute of Public Administration 1966) 94, September 1937.

⁵² While collections of documents that focus on the Indian Constitution always mention these resolutions as part of the teleology of the Constitution of 1950, they are absent in all traditional legal and constitutional histories which focus entirely on the Government of India Act 1935.

In this section, we briefly explore the history of constitutional aspirations, which is ‘the passionate insistence that the constitution must be (or in other words must be made to be) a recognition and expression of legitimate aspirations.’⁵³ It is an account of how the constitutional texts discussed in the previous section were received and reimagined by Indians over the years. This section focuses on readings and understandings of rights, though one could do the same exercise for questions of federalism, separation of powers, or local self-government.

The earliest sets of rights claims against the colonial State emerged in the new urban centres of Bombay, Madras, and Calcutta. As scholars have long recognised, the most articulate statement of liberal constitutionalism came from Rammohan Roy in early-nineteenth-century Calcutta. Roy, who has been usually cast into the teleology of Indian modernity, has recently been located within a global trend of demanding liberal institutions across the world in the early nineteenth century. His centrality to this world was recognised by the decision of Spanish liberals to dedicate the Cadiz constitution of 1820 to Rammohan Roy.⁵⁴ Roy’s liberal constitutionalism was not a product of Western education, but arose from a particular urban social milieu at the turn of the nineteenth century, when an association of non-official Europeans, mixed-blood Eurasians and Portuguese, and the new Indian elites of Calcutta formed ‘a novel, even if unstable and short-lived early modern formation seeking to assert the freedoms of the subject against arbitrary and absolute power.’⁵⁵ English migration to India increased in the early nineteenth century, and Englishmen who were not associated with the Company found that their traditional liberties of appeal to the British Crown were severely restricted, and made common cause with others similarly disenfranchised by influential social groups. Rammohan Roy began to represent himself as being born within British dominions and ‘entitled to all the privileges of the natives of Great Britain.’ Among his early tracts were his vociferous defence of the freedom of the press as ‘an invasion of civil rights’, the restriction of appeals to the Supreme Court, restrictions on movement, and the exclusion of natives from juries. He set up a contrast between British and Mughal rule, noting that under the Mughals, the ‘natives’ had enjoyed all political privileges including the right to hold the highest offices of the State without disqualification or degrading restrictions. The loss of such political consequence under the British was to be compensated by the more secure enjoyment of civil and religious rights, and the failure to ensure this challenged the compact.

These urban coalitions, particularly in Bombay and Calcutta due to their proximity to Portuguese and French territories, were also influenced by the news of constitutional transformations in Napoleonic Europe. However, as Chatterjee points out, this cosmopolitan liberalism was short-lived; by the mid-nineteenth century racially mixed meetings became a rarity in Calcutta and the space for a creolized constitutionalism was eclipsed.

The other source of rights that Burke articulates as ‘Mughal constitutionalism’ and Roy as ‘ancient constitutionalism’ draws from pre-colonial traditions where antiquity itself was

⁵³ Hendrik Hartog, ‘The Constitution of Aspiration and “The Rights That Belong to Us All”’ (1987) 74(3) *The Journal of American History* 1013.

⁵⁴ Christopher Bayly, *Recovering Liberties: Indian Thought in the Age of Liberalism and Empire* (Cambridge University Press 2012) 47.

⁵⁵ Partha Chatterjee, *The Black Hole of Empire: History of a Global Practice of Power* (Princeton University Press 2012) 141.

the chief source of rights, frequently asserted in the context of land or privileges of office.⁵⁶ The demands for protection of 'ancient customary liberties' by subjects ranging from Hindu widows demanding their inheritance rights to temple authorities resisting taxation formed the more broad-based secondary order of rights claims in colonial India. This order drew upon promises made by the colonial government in 1772 and in 1858 to apply Hindu and Muslim religious laws to matters concerning marriage and inheritance. These promises became sites of furious contestation between the State and various groups of citizens. As recent scholarship has suggested, the administration of Hindu and Muslim law did not merely resurrect scriptural authority, but transformed it through liberal ideas of equality, women's rights, and difference.⁵⁷ As Tanika Sarkar argues, rights were conjugated from messy encounters between scriptural law and the Anglo-American legal system, rather than through some form of systematic political thinking.⁵⁸

The Queen's Proclamation of 1858 and the direct assumption of control by the British Crown saw an increasing number of Indians assert that as subjects of the Crown they were entitled to 'equal and impartial protection of the law'. Increasingly, elite Indians began to claim the rights of a citizen *within* the Empire rather than against it, despite express denial of the same by both London and the white settler colonies.⁵⁹

The Indian legal public was not dissuaded by the illiberal nature of the colonial constitutions; as one textbook writer advised lawyers, 'the acts of parliament were mere bare skeletons into which the breath of life came from other sources.'⁶⁰ What were some of these other sources? One example comes from the Congress agitations against the Rowlatt Bill, which the Congress had condemned as 'interfering with the fundamental rights of the Indian people.'⁶¹ Given that there were no designated Bills of Rights, it is clear that by 'fundamental rights', they are referring to the rights of procedure, appeal, and review granted under the Criminal and Civil Procedure Codes.⁶² The idea of these procedural law codes as guaranteeing rights continued even after Independence, when Special Tribunals that carved exceptions to these norms, for instance for oral admission of evidence or to trial by jury, were condemned by the Supreme Court.⁶³

⁵⁶ Sumit Guha, 'Wrongs and Rights in the Maratha Country: Antiquity, Custom and Power in Eighteenth-Century India' in Michael Anderson and Sumit Guha (eds) *Changing Conceptions of Law and Justice in South Asia* (Oxford University Press 1997) 14.

⁵⁷ See particularly, Tanika Sarkar, 'A Pre-History of Rights: The Age of Consent Debates in Colonial India' (2000) 26(3) *Feminist Studies* 601; Rachel Sturman, *The Government of Social Life in Colonial India: Liberalism, Religious Law and Women's Rights* (Cambridge University Press 2012).

⁵⁸ Tanika Sarkar, 'Something Like Rights? Faith, Law and Widow Immolation Debates in Bengal' (2012) 49(3) *Indian Economic and Social History Review* 295.

⁵⁹ Sukanya Bannerjee, *Becoming Imperial Citizens: Indians in the Late Victorian Empire* (Duke University Press 2010).

⁶⁰ KA Shah and GJ Bahadurji, *A Commentary on the Government of India Act, (Consolidated) of 1919, with Additional Chapters on the Indian Local Governments, Indian Army, Indian Finance, and the Native States in India* (NM Tripathi 1924). See also Stephen Legg, 'Dyarchy: Scalar Geographies of Interwar-India' (forthcoming).

⁶¹ *The Rowlatt Bills—A Criticism* (British Committee of the Indian National Congress 1919).

⁶² Rohit De, 'Rebellion, Dacoity, and Equality: The Emergence of the Constitutional Field in Postcolonial India' (2014) 34(2) *Comparative Studies of South Asia, Africa and the Middle East* 260.

⁶³ *State of West Bengal v Anwar Ali Sarkar* AIR 1952 SC 75; *Abdur Rahim v Joseph A Pinto* AIR 1951 Hyd 11 (FB).

The other major source of constitutional imagination remains the multiple constitutions drafted by different groups of the Indian public, beginning with Tilak's Swaraj Bill of 1895. The Bill provided for a small list of broadly worded rights that included rights to free speech and expression, property, personal liberty, inviolability of one's home, equality before law, equality to admission to public offices, and the right to petition for redress of grievances. Early articulations of rights, such as the Declaration of Rights of 1918 that the Congress demanded be included in the Government of India Act 1919, expanded the list of civil and political rights to include the right to bear arms, the right to life and liberty, and the freedom of press and association. However, by the 1920s the proposed Bills of Rights expanded to include social and economic rights culminating in the Resolution of Fundamental Rights and Economic Changes at the Karachi Session of the Congress in 1931.⁶⁴ The resolution argued that in order to 'end exploitation of the masses, political freedom must include economic freedom'. Along with fundamental rights, the resolution also provided for the ending of bonded labour and child labour; free primary education; the expansion of a labour welfare regime protecting unions, women workers, and providing a pension and a living wage; providing for the redistribution of resources through the ending of usury and State control over key industries and national resources; and finally, recognising the communal problem, it laid out protections for minority rights. It was abundantly clear that any future Constitution of India would contain an extensive list of enumerated political, social, and economic rights. Almost all the rights enumerated in the Nehru Report and the 1931 Resolution found their way into Parts III and IV of the 1950 Constitution. The only right that disappears completely is the constitutional right to bear arms, which, given the violence on the streets in 1946, is unsurprising.

IV. CONSTITUTIONAL CULTURE

One of the key features of constitutional culture is a limited government, usually checked by the judiciary. Unlike the UK, the courts of the British Empire came to exercise judicial review quite early through the application of the doctrine of *ultra vires*. Since the colonial legislature was created through a British legislation, it was subordinate to the British Parliament. Therefore any law that transgressed the provisions of the parent statute that constituted the colonial legislature could be void.⁶⁵ In 1877, the Calcutta High Court acquitted two persons accused of murder on the grounds that the law that they were convicted under was *ultra vires* the Indian Councils Act 1861.⁶⁶ The Privy Council would reverse the acquittal on appeal but did not question the powers of the High Court to review legislation for constitutionality. The Privy Council observed that the Indian legislature had its powers expressly limited by the British Parliament and could not go beyond its limits.⁶⁷ While there was no express provision for judicial review in the 1935 Act, the discussions before the

⁶⁴ Niraja Gopal Jayal, *Citizenship and its Discontents: An Indian History* (Permanent Black 2013). The other major articulations were the Commonwealth of India Bill of 1925 and the Nehru Report of 1928.

⁶⁵ DD Basu, *Tagore Law Lectures on Limited Government and Judicial Review* (SC Sarkar and Sons 1972) 282.

⁶⁶ *Empress v Burah & Book Singh* (1878) 3 ILR Cal 64.

⁶⁷ *R v Burah* [1878] UKPC 26.

parliamentary committee had recognised that this would be a necessary consequence of a distribution of legislative powers between the centre and the provinces.

Despite the gradual centralisation of the executive and legislature after 1857, the judicial architecture of India remained fragmented. The Indian High Courts Act of 1861 abolished the old 'Supreme Courts' established by Royal Charter in Bombay, Calcutta, and Madras and replaced them with High Courts which acted as the Supreme Courts of appeal, reference, and revision from all subordinate courts in their province. Subsequent legislation duplicated the High Courts in other provinces, though in recognition of their former royal status, the courts in Bombay, Madras, and Calcutta continued to enjoy a limited original jurisdiction within the limits of the original Presidency towns.⁶⁸ The final seat of judicial authority remained the Judicial Committee of the Privy Council in London, which exercised wide powers of superintendence, as the royal prerogative to give special appeal could not be restricted by a law in British India. Despite frequent avowals of the superiority of the Privy Council and praise for its wisdom, by the 1920s the Indian legal profession had begun to articulate a demand for a Supreme Court in India. Not only were appeals to the Privy Council expensive, time-consuming, and available only to the super-wealthy, but institutionally, the limited awareness of Indian laws and the absence of dissenting opinions hampered the clarity that lawyers wanted. The Privy Council's lack of connection with public opinion in India was one of its greatest flaws.

Several provincial authorities and almost all the legal public bodies such as bar associations and vakils' associations favoured a Supreme Court in India in the 1920s. However, when the proposal for a court with an all-India jurisdiction was finally put forward during the Round Table Conferences, it was driven more by concerns of federalism than by judicial autonomy or unresponsiveness. The Round Table Conferences proposed to create an all-India federation of the British Indian provinces and the Princely States and to provide responsible government in the provinces. Support for a Federal Court came from both the Indian States that were concerned about being dominated by the central legislature and provincial politicians who feared that the unelected central executive would curb their powers, and from minorities, who were worried about the consequences of majoritarian electoral politics. These concerns would require an independent judiciary, which would have the power to declare *ultra vires* legislative acts that encroached upon minority rights or other spheres of government. The Federal Structure Committee decided to grant the provinces juristic personalities so that they could sue each other and the Union government before the Federal Court.⁶⁹

In the Third Round Table Conference, there was an attempt by the delegates from British India to expand the proposed Federal Court into a Supreme Court with a much wider jurisdiction over appeals. This was strongly resisted by representatives of Princely States, who feared judicial encroachment into the internal affairs of their States.⁷⁰ The Joint Select Committee deferred the decision on the Supreme Court by providing that the legislature

⁶⁸ Rohit De, "A Peripatetic World Court": Cosmopolitan Courts, Nationalist Judges and the Colonial Appeal to the Privy Council' (2014) 32(4) *Law and History Review* 821.

⁶⁹ For a detailed account of these proceedings, see MV Pylee, *The Federal Court of India* (Manaktalas 1966) 64–83.

⁷⁰ Most Princely States were judicially autonomous and while several since the 1920s had established Chief Courts, very few had true judicial independence.

may expand the jurisdiction of the Federal Court in the future. The Government of India Act 1935 provided for a Federal Court that would have jurisdiction not only over the interpretation of the Constitution but also over the interpretation of any laws enacted by the federal legislature. The Court also had appellate jurisdiction over civil and criminal cases, which were certified by the High Courts as involving a substantial question of law. The Act provided for the appointment of judges by the King on the recommendation of the Secretary of State for India, in order to immunise the Court from local politics. Compared to the High Courts, Federal Court judges had greater security of tenure. Their retirement age was 65; they were paid handsome salaries out of the consolidated funds which were not controlled by the legislature; the legislature was prohibited from discussing the conduct of judges or changing their salaries and tenure; and perhaps most importantly, Federal Court judges could only be removed on grounds of misbehaviour or infirmity upon the recommendation of the PC.

The Federal Court was finally inaugurated two years after the commencement of the Government of India Act. Despite the initial fanfare, expectations were low. The federation that had been the motivating factor behind the Court had failed to come into existence due to the recalcitrance of the Princely States, leaving the Court with a much-reduced jurisdiction. The first three judges, while eminent legal figures, were not known for their independence or boldness of vision. The new Chief Justice Maurice Gwyer had been a civil servant in London and was the main draughtsman of the 1935 Act. His successor, Patrick Spens was a Conservative MP before his elevation. Of the Indian judges, Varadachariar had a distinguished but fairly non-controversial judicial career; Sir Shah Sulaiman had famously upheld the conviction of the revolutionaries in the Meerut Conspiracy Case; MR Jayakar had been a leading moderate politician, favoured by the establishment; and before his appointment, Zafarullah Khan had led the government benches in the central legislative assembly and had been a member of the Vice-Regal cabinet.⁷¹

The new Court faced opposition from the existing legal establishment. Both the Privy Council and the High Courts saw the Federal Court as a potential encroacher on their jurisdiction and privileges. Viscount Simon, the Lord Chancellor, repeatedly questioned the need for the Court. The Chief Justices of Bombay and Calcutta publicly protested efforts to expand the Federal Court's jurisdiction, noting that to 'interpose a new untried court in Delhi between them could only diminish the status and authority of the High Court and make the Privy Council more remote... diminishing the confidence of the Indian public in the administration of justice in this country'.⁷² The location of the Federal Court in New Delhi, a city with an undistinguished local bar, was viewed with considerable scepticism.

The remarkable successes of the Federal Court are attributable not to institutional factors, but to the vision and judicial entrepreneurship of its judges, notably Sir Maurice Gwyer. At the inaugural session of the Court, Chief Justice Gwyer reminded his audience of the judicial role:

Obeying the old maxim that it is the *part of a good judge to enlarge his jurisdiction*, I have for a moment looked far into the future... It will always be our endeavour to look at the

⁷¹ Gwyer Strudwick Papers, MSS EUR F506/11; IOR/L/PO/8/98(I) L/PO/203 (I) (Kania-Spens).

⁷² 'Memorandum from the Chief Justice of Bengal on the Proposed Enlargement of the Appellate Jurisdiction of the Federal Court', 21 March 1940 IOR: L/PJ/8/458/381.

Constitution of India... not with the cold eye of an anatomist but as a *living breathing organism*, which contains within itself as all life must, the seeds for future growth and development ... The Federal Court will declare and interpret the law, and that I am convinced in no spirit of formal or barren legalism.⁷³

The judges could have easily chosen to develop a narrow and strict construction of the 1935 Act, but instead they interpreted it widely to admit a greater range of cases and devise creative solutions. The Act also emphasised its role as the apex court in India. Explaining why they had rejected four consecutive leaves to appeal to the Privy Council, Chief Justice Gwyer reminded the Viceroy 'that we were not a subordinate court ... we were not disposed to encourage Indian litigants to seek for decisions on constitutional questions other than in their own Supreme Court, the first Court sitting on Indian soil with jurisdiction over the whole of British India'.⁷⁴

The outlook of the Court undoubtedly influenced its jurisprudence in two key areas of federalism and civil liberties.⁷⁵ During the wartime emergency, the Federal Court emerged as a champion for civil liberties using its limited jurisdiction to strike down government detention policies, declare special criminal courts unconstitutional, and liberalise the standard of prosecution for the offence of sedition.⁷⁶ This resistance was all the more striking given the deference shown by the House of Lords towards the executive on the question of detentions during wartime.⁷⁷ The criticism of the Federal Court shocked the colonial regime and caused considerable difficulties in maintaining the emergency.

On the question of federalism, the Court remained acutely aware that for the first time popular legislative assemblies had taken over the administration of the provinces. The provincial ministries were led by nationalist leaders, who were elected on an agenda for social and economic transformation. Several of the new transformative laws disturbed the status quo and led to legal challenges before the Federal Court. MV Pylee, in his magisterial review of the Federal Court's jurisprudence, argues that 'the impression is strong and the conclusion almost inescapable' that the Court was bent on establishing provincial autonomy under the new federation.⁷⁸ While the text of the Constitution favoured the centre over weak units the Court evolved doctrines to balance the powers. Several provincial legislation dealing with urgent social and economic questions, such as the United Provinces Rent Remission Act or the Madras Temple Entry Act, could have been declared invalid on a narrow reading of provincial lists or for their incidental encroachment of the central lists. Acknowledging the popular support behind the provincial legislation and recognising that the intention of the 1935 Act had been to increase

⁷³ Maurice Gwyer, *Convocation and Other Addresses* (Cambridge Printing Works 1942) (emphasis added).

⁷⁴ Sir Maurice Gwyer to Lord Linlithgow, 9 November 1942, IOR/L/PO/8/98(I) L/PO/203 (I)/149.

⁷⁵ Rohit De, 'The Federal Court and Civil Liberties in Late Colonial India' in T Halliday, L Karpik, and M Feeley (eds) *Fates of Political Liberalism in the British Post-Colony: The Politics of the Legal Complex* (Cambridge University Press 2012) 59–90.

⁷⁶ *Keshav Talpade v Emperor* AIR 1943 FC 72 (detention); *Emperor v Benoari Lall Sarma* AIR 1943 SC 36 (Special Criminal Courts); *Niharendu Dutt Majumdar v King Emperor* AIR 1942 FC 22 (sedition).

⁷⁷ *Liversidge v Anderson* [1942] AC 206; *Greene v Secretary of State for Home Affairs* [1942] AC 284.

⁷⁸ MV Pylee, *The Federal Court of India* (Manaktalas 1966) 205.

self-government in India, the Federal Court ruled liberally.⁷⁹ In deliberating the federalism cases, the Court frequently turned to precedents from the United States of America, Canada, and Australia, both drawing on their experience but also locating the rather precarious Indian federation amid the most successful ones. Upon his appointment, MR Jayakar insisted that the library should contain authoritative textbooks on federal constitutions as well as a complete set of Federal Court reports from Australia, Canada, South Africa, and America.⁸⁰

Unsurprisingly, the Federal Court over its first decade built up a constituency of support not just among lawyers but also among the general public. Nationalist leaders of every ilk, from Gandhi to Rajaji to the Indian National Army invited the judges and the courts to arbitrate on thorny political questions, leading to an editorial in the *Dawn* to caustically remark that the 'CJI has been put in the form of a moral mentorship next only to the position occupied by the Metropolitan Archbishop of India'.⁸¹ The Federal Court's stellar defence of civil liberties led to an increasing recognition that the Supreme Court should have a formal role in the defence of civil liberties. The Sapru Committee report on constitutional principles recommended that 'difficult questions of constitutional law involving civil liberties and rights should directly go up to the Federal court through its original jurisdiction rather than a long and protracted trial in the lower courts'.⁸²

The supportive role played by the Federal Court on federalism reassured nationalist leaders, who noted that the Federal Court did not have the power to grant special leave to appeal and its jurisdiction was limited to cases where an appeal was certified by the High Court. The Sapru Committee recommended that these powers be granted to the Federal Court, making it more accessible.

V. CONCLUSION

Indian constitutional law became a subject for examination at Bombay University in the 1920s and one of the early textbooks attempting to define the constitution noted:

[T]he term constitution is used in two widely differing senses. It may mean the written instrument of fundamental law which outlines the governmental system, defines the power of governing bodies, enumerates and guarantees rights of its citizens and lays down other principles and rules to be observed in carrying on the affairs of the state. Or it may denote, the whole

⁷⁹ Pylee draws an interesting contrast with the contemporaneous legal challenges to the New Deal. Note that courts the world over had watched the battle between the Supreme Court and a popular President and must have drawn lessons. Given the popular nature of the provincial laws and the state of nationalist feeling in India, ruling against the provinces would have led to a massive hue and cry: MV Pylee, *The Federal Court of India* (Manaktalas 1966) 209.

⁸⁰ MR Jayakar to Sir Shah Suleiman, 6 April 1937, MR Jayakar Papers (National Archives of India). Gwyer enclosed the names over thirty textbooks on constitutional law from different countries, as well as comparative work done by AB Keith.

⁸¹ 'What is He After?' *Dawn* (New Delhi, 18 December 1943). *Dawn* was an English-language daily published by the Muslim League and was critical of the Congress.

⁸² *Constitutional Proposals of the Sapru Committee* (Padma Publications 1945) 247–48.

body of laws, customs and precedents either partially or not at all committed to writing, which determine the organization and workings of government.⁸³

This chapter seeks to explore both meanings of the Constitution in pre-Independence India. Instead of rejecting earlier texts as 'imperial' and therefore contaminated, it recognises the active participation of several members of the future Constituent Assembly in the drafting and reception of these earlier documents. The members of the Constituent Assembly and their advisors did not operate behind a veil of ignorance, but as this chapter outlines, carried a certain conception of the constitutional order in their mind.

The theme of dualism ran through the constitutional history of India. From the dual system of administration in Bengal to the diarchy introduced by the Montague–Chelmsford reforms, colonial government had continually separated the seats of power and responsibility. This had proved particularly frustrating to the Congress governments that were formed in 1937 and caused a deep suspicion about the fragmentation of executive authority. The gradual construction of a federal system with the integration of the Presidencies in the nineteenth century and devolution to the provinces in the early twentieth had made the workings of the federal government, both administratively and fiscally, familiar questions. From the late nineteenth century, there was a belief that Indians were entitled to certain rights and a gradually expanding support for enumerated rights that would address political, social, and economic questions. The stellar leadership of the Federal Court in the 1940s had created a broad consensus on the need for an independent Supreme Court with powers of judicial review. But perhaps most striking was a belief shared by politicians, bureaucrats, and judges across the ideological divide that constitutions would continually evolve and that constitutionalism meant a commitment to principles (there existed disagreement as to what these principles would be) rather than to a strict interpretation of a text.

⁸³ JN Verma and MA Gharekhan, *The Constitutional Law of India and England* (2nd edn, Popular Book Depot 1931) 227.

CHAPTER 3

INDIAN CONSTITUTIONALISM

crisis, unity, and history

UDAY S MEHTA

... neither morals, nor riches, nor discipline of armies, nor all these together will do without a constitution.

John Adams¹

India is bound to be sovereign, it is bound to be independent, and it is bound to be a republic.

Jawaharlal Nehru²

I. INTRODUCTION

MODERN democratic constitutions are the form, or more precisely, the prior shape, the stipulated mould, to which political power, and its various structures, have to conform. Constitutional founding moments express that inescapable circularity in which they are authorised by the people, but which, by the structures that constitutions put in place, reconstitute the people as subjects. Constitutions identify people as the ultimate source of power, and yet they also transfer that power; simultaneously making them subjects of power and limiting the way in which people can participate in its exercise. In the process they often express a deep implicit distrust of people, while also giving them a collective identity and a sense of agency. Constitutions give to modern politics its supervening identity, and in turn they circumscribe what would count as legitimate forms of political and collective behaviour. They supply the distinctive structure, order, and boundaries, and in particular the specific mode by which power expresses itself. But they also designate

¹ Cited from Hannah Arendt, *On Revolution* (Penguin Classics 1977) 133.

² *Constituent Assembly Debates*, vol 1 (Lok Sabha Secretariat 1955) 62, 13 December 1946.

other forms of existence as illegitimate, improper, and extra-constitutional. In this sense, they ostracise by marking out the boundaries between constitutional form and the social remnants that exceed it. Because constitutions have acquired the legitimacy of being an almost mandatory form of collective self-expression, it is difficult to recover a sense of the plenitude from which they assumed this singular standing. It is especially difficult to recover a sense in which collective identity was not, or need not be, associated with the constitutionalising of power.

This chapter considers from a rather abstract standpoint the background conditions, understood mainly as ideas, which informed the Indian Constituent Assembly (1946–49) as it reflected on the future identity of the country and the role of the Constitution in forging that identity. Such a perspective, given its abstractness and focus on ideas, requires justification because, in a familiar rendering, constitutions, including the Indian one, are identified with concrete events that are contextually saturated. They are typically taken to be the product of a historical process, rich with decisive events, forceful personalities, collective struggles, and constitutional antecedents. All of this is true of the Indian case, where the nationalist movement, legislative documents like the 1935 Government of India Act, the Cabinet Mission Statement of 1946, along with towering personalities like Ambedkar and Nehru, decisively shaped the content of the final Constitution. As living documents, constitutions, perhaps more than any other instrument of the State, are in a constant process of producing their own ongoing textual references, closely associated with other constitutional and legislative antecedents. My focus, instead, is on broad ideas such as the pressing urgency of political identity, the basic centrality of unity, the reliance on the professed permanence of crisis, and the role of the social, and the idea of the future. All these ideas, in my view, had a defining significance for the Constitution and the vision of country it put in place. Yet one might understandably argue, especially in light of issues such as fundamental rights, the directive principles, separation of powers, federalism, or more broadly, the specifics of institutional design—which are the pointed concern of the text of the Constitution, and which now have a rich history of case law and legislative intent—that the perspective offered here hovers too far above the text of the Constitution and the relevant context. This may be true. My justification for my orientation relies on two considerations. First, the study of the Indian Constitution in terms of its constitutional antecedents, the evolution of doctrine, its relationship to political and legislative context, and the analysis of case law has already been done by expert scholars such as Granville Austin, HM Seervai, and many others.³ The fact that such a field of study is now clearly demarcated speaks of its self-assurance, which in turn allows reflection on the Constitution to cordon itself off from the broader intellectual tradition of which it was once an emergent part. Self-confidence often expresses itself in self-enclosure and self-reference. This relates to the second reason I offer for my orientation. Despite the truly impressive and growing self-assurance of this body of literature, there has been a relative neglect of ideas, often of a distant provenance, which in many ways were the philosophical reservoir that nourished constitutional thought. The evidence of this influence on the

³ See Granville Austin, *The Indian Constitution: Cornerstone of a Nation* (Oxford University Press 1966); Granville Austin, *Working a Democratic Constitution: The Indian Experience* (Oxford University Press 1999); HM Seervai, *Constitutional Law of India: A Critical Commentary*, vols 1–3 (4th edn, Universal Law Publishing 1991–96).

Constitution is often obscured. It hides in many ways in the binding of the text. These ideas often belong to a moment when the very distinctiveness between philosophical, religious, political, and constitutional thought was deeply embattled and entangled, and where each was subject to the other's distinct and shared urgencies. In focusing on these ideas, I hope to present not just the logic that is internal to them, but also to point to the way in which they opened and delimited the constitutional vision of India during the process of its initial and self-conscious articulation.

II. CONSTITUTIONAL IMPERATIVES

Every constitution has a complex and distinctive provenance. Each is the product of specific struggles, opportunities, and social contexts. These conditions mark constitutions, as they would any event that emerges from the rich vortex of history. But, in another sense, constitutions, at least modern ones, respond to imperatives, which though they have a history—in this case a modern history—in a crucial manner also transcend the logic of historical causation. These imperatives are embedded in narratives of destruction and creation, of generating power and constraining its exercise, of creating unity out of plurality and limiting plurality in the name of unity. They function as though they were natural conditions, which impose an almost primal necessity on constitutions: a necessity which is putatively not driven by the logic of history, but by a meta historical narrative that refers to a broader set of conditions that are deemed to underlie it—conditions that have assumed an almost metaphysical status. The imperatives refer to existential conditions, which occasion a distinctly political response; not merely in the familiar sense in which politics answers to the vagaries of extant conditions, but in a more architectonic and mythic sense in which it professes to redress a predicament that traverses all conditions.

It is commonplace to think of constitutions as seeking to establish fundamental norms of justice, legality, and the forms and offices of governance. This is, of course, true. In its original articulation the idea comes from Aristotle.⁴ Alexander Hamilton, in expressing the first axiom of modern constitutions, famously declaimed that they were a mechanism to ensure that 'the streams of national power ought to flow immediately from that pure original fountain of all legitimate authority', namely the consent of the people.⁵ At one level, constitutions are literally the articulation of a plan that establishes the major political institutions of a society: parliament, the executive, the judicial framework, the superior law that constrains ordinary law, the mode and extent of judicial review, the manner in which power is apportioned in different branches of government, the stipulations of the franchise, the rights that citizens have and with respect to whom they may be exercised, along with a variety of other norms that make up the political template of the state. In this sense,

⁴ 'A constitution [is] an organization of the offices in a state, by which the method of their distribution is fixed, the sovereign authority is determined, and the nature of the end to be pursued by the association and all its members is prescribed.' Aristotle, *Politics*, tr Ernest Baker (Oxford University Press 1946) 28–32. See also Charles H McIlwain, *Constitutionalism—Ancient and Modern* (Cornell University Press 1940).

⁵ Alexander Hamilton, James Madison, and John Jay, *The Federalist*, ed Jacob E Cooke (Wesleyan University Press 1961) 146.

constitutions are rightly thought of as 'the rules of the game' that give expression to a vision of a society in the process of its coming into being.⁶

But this familiar rendering of what constitutions are and do misses a narrative consensus that precedes the framing of constitutions, and which constitutions, as it were, merely reflect. It is a consensus about the State and its identity, and about a specifically political redress to a modern predicament.⁷ At the risk of some exaggeration, one might say that European constitutional history since the seventeenth century was articulated around the nuances of this consensus, which was forged on the wreckage of theological disputes and a displacement of inner convictions, along with a vision of social evisceration that could no longer hold society together, and the corresponding and singular redress offered by the power of the State and the unity of the nation. It is this consensus that stands behind and motivates much of modern constitutionalism. One should not be surprised by these distant influences. History almost always yields more than its starting point.

Understanding the imperatives that drive modern constitutionalism is important because they make clear that notwithstanding the epic sense in which constitutions are associated with an act of a people's sovereign choice, in other ways they are the products of a prevenient logic and destiny in which what is chosen is already, as it were, substantially given. The epic and the sovereign are thus also acts of ritual repetition, where a professed break with history also enfold it into a pre-existing narrative of necessity. It is perhaps a banal and self-evident feature of that narrative, but one that bears repeating, especially in a context where typically there are other claims to authority, namely that constitutions put into place principles that are structured around the idea of ruling and being ruled.

The stakes of this recursive process were more pronounced in post-colonial societies that came to political self-consciousness in the latter part of the twentieth century. Notwithstanding the idealism of the nationalist struggle, the conclusion of that process was invariably constrained by a preformed and limited template of possible identities. In expressing their grievances against empires, the formerly subject societies had stridently vouched for their own difference and their own glowing nationhood hallowed in distinct hues in a crowded field of extant social norms and practices. But in articulating themselves as political entities, a task specific to constitutionalism and nationalism, they were perforce destined to affirm their existence through acts of sovereign repetition; in a borrowed vocabulary with its own distinctive and implicit traumas and its own reliance on a tool box of familiar concepts in which, to recall Hamilton, the power of the state was the principal font and purpose.

Post-colonial constitutionalism, in many ways, emerges from this dual and awkward pressure of, on the one hand, having to give expression to a distinctive national emotion; and on the other, discovering that the familiar form of constitutionalism is already alloyed to an ancient imperative script, of distant sectarian battles, which were linked in terms of

⁶ Madhav Khosla, *The Indian Constitution* (Oxford University Press 2012) xii. Joseph Raz makes this point in terms of the distinction between 'thin' and 'thick' constitutional understandings. See Joseph Raz, 'On the Authority and Interpretation of Constitutions: Some Preliminaries' in Larry Alexander (ed) *Constitutionalism* (Cambridge University Press 1998) 153.

⁷ I mean this claim in a broad sense. It is not meant to deny that the consensus about the state may itself be backed by a moral consensus. In fact, since the account I am offering at a very general level has a Hobbesian inflection, it is worth pointing out that for Hobbes the rationality of the state is itself underwritten by its coincidence with a moral rationality.

redress with a particular conception of power and its relation to the nation. Hence in its political articulation the nation, almost unwittingly, finds itself to be a 'fragment' of a larger discursive constellation with a prescribed political destiny.⁸ The fact that the first three words of the American and the Indian Constitutions are the same only hints at the deeper sense in which the former serves as one of the templates for the latter, not least by making both constitutions the product of 'the people's' collective action. The Constitution prescribes for the nation its primary mode of existence, and in doing so folds it into a narrative in which its distinctiveness is qualified, not least because its many untidy edges are fit into a stipulated mould. It bears repetition that the project of the nation, which notwithstanding the euphoria of 'Independence', in many ways was to constitute a 'we, the people', under conditions where that national identity was still deeply contested, is for the Constitution, already taken as a settled fact. In the case of the Indian constitutional founding this was doubly the case. Not only was the Constituent Assembly authorised by an existing government, the interim government, along with the Cabinet Mission statement of May 1946, but also the deliberations on the future Constitution were significantly constrained by the Government of India Act of 1935.⁹ Nehru's declamation at the head of this chapter conveys a sense in which that destiny was chosen, but also already prescribed. There are implicit in this settlement the meanings of other important terms such as power, authority, consent, rights, and federalism. Yet the dialectic of the contestation regarding a national identity and a constitutional vision in which it is a fact is never ultimately stable or fully settled. It permeates everyday life, if nothing else as a reminder that even the imperatives that wrap themselves in the garb of meta-historical necessity are not immune from an essential experimentalism that marks history and public life.

III. A NARRATIVE OF CRISIS AND ANARCHY

The most salient and, in many ways, determinative existential contention that informs constitutional founding moments is that the extant conditions of a society are deemed to be deeply disturbed by an intractable crisis, which renders society anarchical and exposes human life to severe exigencies, and at the limit, to unnatural forms of suffering and death. In its constitutional significance, the contention is not really dependent on a historical claim about the present actually being marked by anarchy, even though most often a factual claim is made to buttress the philosophical argument.¹⁰ The claims of anarchy and acute disorder function as meta-historical postulates that put into motion a series of implications. The importance of

⁸ The idea of new nations as fragments of a European political imagination draws on the thought of Louis Hartz. See Louis Hartz, *The Founding of New Societies* (Harcourt, Brace & World 1964).

⁹ Writing in early 1947, Sir BN Rau reminded the Constituent Assembly: 'It is pertinent to observe that we are still governed by the "transitional provisions" in Part XIII of the Government of India Act of 1935...' BN Rau, *India's Constitution in the Making* (Orient Longman 1960) 2.

¹⁰ Thus, for example, Hobbes, who offered the most influential philosophical and abstract argument for the meta-historical priority of anarchy in grounding the necessity of the State, also supported that argument as being 'occasioned by the disorders of the present times.' Thomas Hobbes, *Leviathan* (first published 1651, Hackett 1994) 496.

this foundational contention and its status for constitutionalism lies in that it points to a gap that needs to be filled, and the untenability of the extant framework of society as offering the appropriate binding material to fill the gap. This thus motivates, with pressing urgency, the need for a State and its cognate, the citizen. In its most powerful and elaborate philosophical articulation the idea is, of course, associated with Thomas Hobbes, who famously deployed the fact, and even more consequentially, the idea, of civil war and anarchy as the generative postulate of modern politics and the rationale of the modern unified State. It was civil war and its anarchical implications, along with the impossibility of its resolution in religious terms that had motivated it, that necessitated a new idiom of power, which displaced the language of conscience (the inner realm) with one whose mandate was the peace and security of the outer body, of both the individual and of the unified State. Hobbes was substantially indifferent to the content of the religious beliefs that had spurred the English Civil War. What was essential was their displacement as the grounds for public obedience. What mattered in terms of the structure of the State was the status of being a citizen, and one could only be a citizen by being the subject of a sovereign. Hobbes was similarly less concerned with the specific substance of laws; rather, in serving as warrants for peace they had to express the will of a sovereign power. One of Hobbes's many enduring contributions to the broad logic of constitutionalism is in having made the State reliant, at least implicitly, on a narrative of anarchy and civil war. Many constitutions, including the Indian one, in their founding self-conceptions paid deep homage to this narrative and philosophical resource.

The invocation of crisis, strife, impending disunity, sectarian divisions, and the prospect of mayhem are ubiquitous in the reflections of the Indian Constituent Assembly Debates that precede the Constitution. The British imperial authorities had themselves for long grounded the legitimacy of their rule as the sole basis for avoiding chaos and mitigating the sectarian crisis which would result from their departure.¹¹ Especially in the early speeches of the Constituent Assembly, where a broader context is being imagined, the invocation of crisis constitutes a haunting background to the deliberations. A few examples make this clear. They are meant to capture the ambient mood of the deliberations and a conceptual orientation—one that is closely linked to the constitutional vision and the urgencies that motivate that vision. Rajendra Prasad, for example, speaks of the context as recalling other such assemblies; it is, as he says, a context of '... strife and bloodshed... conducted amidst quarrels and fights.'¹² Nehru, in one of his early perorations, refers to the freedom struggle as the 'valley of the shadow': 'we have gone through [it]... We are used to it and if necessity arises we shall go through it again.'¹³ Purushottam Das Tandon, while referring to separate electorates, recalls the bloody American Civil War and accuses the British of having created the '... possibility of civil war in our country...' and again 'it is quite possible that civil war may occur...'¹⁴ Sri Krishna Sinha speaks of strife and the spirit of rebellion as making possible and underlying the very existence of the Constituent Assembly.¹⁵ In much the same

¹¹ Faisal Devji gives an extremely thoughtful account of both the British thinking on this matter and Gandhi's heretical embrace of the prospect of anarchy in Faisal Devji, *The Impossible India* (Harvard University Press 2012), ch 6.

¹² *Constituent Assembly Debates*, vol 1 (Lok Sabha Secretariat 1955) 50, 11 December 1946.

¹³ *Constituent Assembly Debates*, vol 1 (Lok Sabha Secretariat 1955) 64, 13 December 1946.

¹⁴ *Constituent Assembly Debates*, vol 1 (Lok Sabha Secretariat 1955) 68–69, 13 December 1946.

¹⁵ *Constituent Assembly Debates*, vol 1 (Lok Sabha Secretariat 1955) 87–90, 16 December 1946.

spirit, MR Jayakar says ‘...frankly there is danger ahead, danger of frustration, danger of discord and division...’¹⁶ Ambedkar recalls and quotes from Burke’s famous speech *On Conciliation with America* precisely because he thinks that the situations in the two assemblies, Britain in the late eighteenth century and India in the context of the Constituent Assembly, are analogous. They are both riven by the belief in the expedience force, but Ambedkar, quoting Burke, continues, ‘...the use of force alone is but temporary. It may subdue for a moment; but it does not remove the necessity of subduing again; and a nation is not governed, which is perpetually to be conquered.’¹⁷ Finally, returning to Rajendra Prasad from a later point in the debates, we may note his description of the extant context of India as being one in which ‘there is a fissiparous tendency arising out of various elements in our life. We have communal differences, caste differences, language difference, provincial differences and so forth.’¹⁸

The background to these apprehensions about civil war and anarchy is a concern with the Muslim question, issues of caste, and pervasive inequality and destitution—hence broadly the social question. Following Independence and especially following the outbreak of hostilities in 1948, there was the additional and recurrent, and as it turned out the semi-permanent, invocation of the threat of war with Pakistan. In their combined effect they produced a generalised anxiety, not altogether dissimilar to Hobbes’ assessment of England in the mid-seventeenth century. It was a picture of a society fraught with the danger of subjective enthusiasms, religious difference, and social and economic divisions. The collective image it produces is of a society in which unity had to be crafted through a new settlement. It is, of course, undeniable that the entire period of the Constituent Assembly, and the early years of the republic, were shadowed by real crises, especially after the failure of the Cabinet Mission, the outrageous expediency of Mountbatten’s plans for the transfer of power, the refusal of the Muslim League’s representatives to join the deliberations, the horror of partition, and the assassination of Mahatma Gandhi. The concern with war, the prospect of disunity, the anguishing worries about social and other forms of destitution typically mark the birth of nations and so it is not surprising that they should be forcefully expressed. Still, it is not these facts alone that adequately capture the importance of this recurrent trope in the Constituent Assembly debates and elsewhere. The facts, while true, are, after all, selective.¹⁹

The idea of crisis is also implicit in another resonant aspect of constitutional founding moments. They typically feature sharp contrasts in much the way Hobbes had starkly distinguished the commonwealth through the morbid imagery with which he described the state of nature. Here words often need the support of images. In the founding of constitutions this is conspicuously the case. They are often spoken as constituting a drama and they typically rely on dramatic images and metaphors to service their monumental purposes.

¹⁶ *Constituent Assembly Debates*, vol 1 (Lok Sabha Secretariat 1955) 81, 16 December 1946.

¹⁷ *Constituent Assembly Debates*, vol 1 (Lok Sabha Secretariat 1955) 103, 17 December 1946.

¹⁸ *Constituent Assembly Debates*, vol 11 (Lok Sabha Secretariat 1955) 993, 26 November 1949.

¹⁹ Devji (n 11), 153, quotes a letter by Lord Linlithgow to Lord Wavell with the following sentence: ‘We could not for the peace of the world allow chaos in India.’ Here, as elsewhere, Gandhi expressed a dissenting view, which was of a piece with his reluctant support of constitutionalism and the need for unity expressed around the medium of the state and political power. In 1942, during the Quit India movement, he made clear to the British that the time had come for them to leave India, even if that meant leaving the country to God and anarchy.

They are conceived and projected through the iconography of darkness and light, night and dawn, past and future, subjugation and rebirth, chaos and order, and despair and hope. These metaphors extend across contexts that include those marked by an obvious revolution and widespread social upheaval, such as the French Revolution, to those where the constitutional founding occurred in a settled field of extant practice, such as in the Indian case. The fact that this stylised vocabulary and iconography, ritualised and, despite being burdened by clichéd overuse, has serviced such a vast range of examples, provokes an obvious question: what spurs such disparate moments to be so reliant on the sharpness of stark contrast and what are the stakes in these profuse distinctions?

The answer to this question touches on something deeper than the mere aesthetics of constitutions and the moments linked with their conception and adumbration. Initially, and above all else, constitutions need to clear the ground for a future set of experiences. The contrasts that are implicit in the metaphors they trade in are linked with distinctive narratives and constitutional visions and ultimately linked with the contested nature of modern politics. Such narratives dislodge rival modes of imaging collective life, institutional arrangements, and norms of governance. They displace and replace memories and practices, and are thus freighted with issues relating to culture and embedded forms of social existence. The starkness of the contrasts that the founding of constitutions rely on, and deploy, are the metaphorical and textual precursors to the grand and expansive project of remoulding of experience and giving it a distinctly political and national cast.

But, as with so many dramatic gestures, there is an anxiety and nervousness implicit in them—in part concealed, in part revealed—often by the sheer audacity of their proclamations. ‘We, the people’, that collective pronoun that putatively authorises so many constitutions, including the Indian one, does so from an uncertain and proleptic position. It knows itself to be only an artefact of the very thing it professes to be creating, and hence, as it were, an embryo professing the fullness of its own maturity. Similarly the nation on whose behalf the constitution speaks and whose identity it claims to secure is not yet unified as a nation in the appropriate sense; the State and the government that the constitution authorises are not yet stable entities; the offices and authorities it articulates are provisional place holders imbued only with high expectations; the principles that it articulates are abstract, and not yet backed by precedent or interpretive clarity; and the history that it professes to demarcate itself from still crowds in on the present. The dramatic masks what is provisional and promissory.

It is therefore not surprising that, in the grand ritual scenes that mark the founding of constitutions and the assemblies that issue them, there are also less noted theatrics that suggest the urgent need to secure the validation and recognition of others. It is all part of the complex process by which that which is new and imbued with intentions is draped in the appearance of validating and established authority. In the case of the Indian Constituent Assembly this happened immediately. Within what must have been the first minute following the convening of the Constituent Assembly in the Constitution Hall on 9 December 1946 the Chairman, Sachchidananda Sinha, read out to the assembly three messages of acknowledgement and felicitation from the Acting Secretary of State for the United States, Dean Acheson, the Foreign Minister of China, Wang Shih Chieh, and from the Australian government. This resulted in the first expressions of cheers and applause in the Constituent Assembly.

The moment of celebratory grandiosity, national self-assertion, and distinctiveness also required a particular kind of applause, which could only be secured through the echo and recognition of others. No doubt nationalism had its particularistic and culturally specific

aspects, but at least among its more thoughtful advocates, figures such as Nehru, Ambedkar, and Fanon, nationalism also always articulated an idea whose transformative political and spiritual energies were thoroughly universal. The claim of independence, not unlike that of imperial authority and imperial subjection, had to be vindicated by a referent beyond itself. This and much else the national State shared with the Empire.

It seems fitting to that general moment that Nehru, speaking as a profoundly thoughtful participant and observer, and again while drawing on a host of sharp metaphoric contrasts, should have said, 'standing on this sword's edge of the present between this mighty past and the mightier future, I tremble a little and feel overwhelmed by this mighty task ... I do not know but I do feel that there is some strange magic in this moment of transition from the old to the new, something of that magic which one sees when night turns to day.'²⁰ Perhaps Nehru trembled because there was the knowledge that the night would assuredly return, that the past was not quite past, that the emergent rested substantially on noble intentions and prophecy, and that the project of national self-creation, notwithstanding all the professions of self-certainty and destiny, required the emollient of a magical elixir.

How is one to make sense at an abstract level, rather than at a merely contextual level, of such insistently grave perorations? Why does the nation, as it comes to self-consciousness, not just in India but elsewhere too, swaddle itself in such mournful garb and dire apprehensions of strife and conflict?²¹ More is at stake here, and an abstract perspective tells us something beyond what can be gleaned from the historical and contextual orientation.

IV. THE NARRATIVE OF UNITY

As an existential contention the narrative of anarchy, civil war, and stark contrast is closely linked with the need for unity with an unequivocal centre of sovereign power. In the modern era nobody articulated the rippling stakes of this more forcefully than Hobbes. The ultimate purpose of the social contract for Hobbes was to articulate the multitude into a singular entity—'This done, the multitude so united in one person is called a *Commonwealth*.'²² Such unity had to be buttressed by the narrative of anarchy and crisis as its counterpoint. The narrative in effect served to delegitimise all alternative claims to authority as satisfying the first virtue of a political order, namely peace and security; and equally, it made that narrative a permanent feature of the political order's continued legitimacy. The very idea of sovereignty as the source of the political identity had to be undergirded by a constant reminder of their intimacy and proximity to their antithesis, namely anarchy, chaos, and death. The significance of this postulate, and its status as a quasi-metaphysical imperative, can be seen in the fact that no set of historical or extant conditions exempts a society from the implications of its implicit threat. Peace and security required the mediation of the State.

²⁰ *Constituent Assembly Debates*, vol 1 (Lok Sabha Secretariat 1955) 64, 13 December 1946.

²¹ As another example, the *Federalist* papers are replete with similar apprehensions. One of the most frequent complaints made by the proponents of the American Constitution against the Articles of Confederation was precisely that the latter would expose the republic to anarchy, chaos, and civil war.

²² Hobbes (n 10) 109.